

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES				1. REQUISITION NO.		PAGE 1 OF 102	
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30							
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NO.		5. SOLICITATION NUMBER 36C10B26R0006	
						6. SOLICITATION ISSUE DATE 03-20-2026	
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Brandon Caltabilota				b. TELEPHONE NO. (No Collect Calls) 848-377-51577	
						8. OFFER DUE DATE/LOCAL TIME 04-03-2026 10:00AM EDT	
9. ISSUED BY Department of Veterans Affairs Technology Acquisition Center 23 Christopher Way Eatontown NJ 07724				10. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☐ SET ASIDE: _____ % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM NAICS: 541511 ☐ HUBZONE SMALL BUSINESS ☐ EDWOSB ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ 8(A) SIZE STANDARD: \$34 Million			
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700) ☐		13b. RATING N/A	
						14. METHOD OF SOLICITATION ☐ RFQ ☐ IFB ☒ RFP	
15. DELIVER TO See Delivery Schedule				16. ADMINISTERED BY Department of Veterans Affairs Technology Acquisition Center 23 Christopher Way Eatontown NJ 07724			
17a. CONTRACTOR/OFFEROR		CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY	
						Department of Veterans Affairs Financial Services Center PO Box 149971 Austin, TX 78714-8971 See website at: http://www.fsc.va.gov/einvoice.asp PHONE: FAX:	
TELEPHONE NO. UEI: EFT:				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER							
19. ITEM NO.		20. SCHEDULE OF SUPPLIES/SERVICES See CONTINUATION Page		21. QUANTITY		22. UNIT	
						23. UNIT PRICE	
						24. AMOUNT	
		Ambient Scribe Enterprise Indefinite Delivery Indefinite Quantity (IDIQ) Contract Type: Firm-Fixed-Price --- Points of Contact --- Contract Specialist: Brandon Caltabilota, Brandon.Caltabilota@va.gov Contracting Officer: Meghan McCloskey, Meghan.McCloskey@va.gov (Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (For Govt. Use Only)			
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA				☐ ARE ☐ ARE NOT ATTACHED.			
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA				☐ ARE ☐ ARE NOT ATTACHED			
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN _____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED				☐ 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____, YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT) Meghan McCloskey Contracting Officer		31c. DATE SIGNED	

Table of Contents

SECTION A	1
A.1 SF 1449 SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES.....	1
A.2 COMBINED SYNOPSIS/SOLICITATION	3
A.3 GOVERNING LAW	4
A.4 SOFTWARE LICENSE, MAINTENANCE AND TECHNICAL SUPPORT:.....	4
SECTION B - CONTINUATION OF SF 1449 BLOCKS	8
B.1 CONTRACT ADMINISTRATION DATA.....	8
B.2 PRICE SCHEDULE.....	9
B.3 PERFORMANCE WORK STATEMENT	13
SECTION C - CONTRACT CLAUSES	70
C.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)	70
C.2 52.216-18 ORDERING (AUG 2020).....	72
C.3 52.216-19 ORDER LIMITATIONS (OCT 1995)	72
C.4 52.216-22 INDEFINITE QUANTITY (NOV 2025) (DEVIATION) (OCT 2025) (DEVIATION).....	73
C.5 VAAR 852.204-72 PERSONNEL VETTING AND CREDENTIALING (MAR 2026) ..	73
C.6 VAAR 852.211-76 LIQUIDATED DAMAGES – REIMBURSEMENT FOR DATA BREACH COSTS (FEB 2023) ALTERNATE I (FEB 2023)	76
C.7 METRICS.....	77
C.8 MANDATORY WRITTEN DISCLOSURES.....	77
SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS	79
D.1 Attachment 001 – Pricing Spreadsheet	79
D.2 Attachment 002 – Business Associate Agreement	79
SECTION E - SOLICITATION PROVISIONS.....	80
E.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998).....	80
E.2 52.216-1 TYPE OF CONTRACT (NOV 2025) (DEVIATION).....	81
E.3 52.233-2 SERVICE OF PROTEST (SEP 2006).....	81
E.4 52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (NOV 2025) (DEVIATION)	81
E.5 BASIS FOR AWARD.....	86
E.6 PROPOSAL SUBMISSION INSTRUCTIONS.....	90

A.2 COMBINED SYNOPSIS/SOLICITATION

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with part 12. This announcement constitutes the only solicitation. Offers are being requested and a separate written solicitation will not be issued.

- i. Solicitation number 36C10B26R0006 is issued as a Request for Proposal (RFP) for Ambient Scribe.
- ii. This acquisition is not set-aside for small business concerns. This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.
- iii. See Section B.2 below for the Price Schedule.
- iv. The purpose of this Indefinite Delivery Indefinite Quantity (IDIQ) contract is to provide a Commercial-Off-the-Shelf (COTS), cloud-based, ambient scribe solution to transcribe clinical encounters, generate notes, and other Artificial Intelligence (AI) advanced functionalities to improve the efficiency of medical care utilizing a Software as a Service (SaaS) delivery model with AI techniques and technologies. This solution shall integrate with VA's Electronic Health Record (EHR) systems and workflows so providers can initiate encounter recordings. This mitigates the need for manual entry of patient identifying information and enables automatic insertion of draft notes into EHR.
- v. This is an IDIQ Multiple Award Task Order (MATO) contract. Individual Task Orders (TO) shall be issued on a Firm-Fixed-Price basis. The ordering period for the basic contract shall be 5-years following the date of award.
- vi. See Section E for the incorporated provisions.
- vii. See Section C for the incorporated clauses.
- viii. Any questions/concerns shall be submitted by March 26, 2026 by 3:00 p.m. EST with the subject line "Questions – 36C10B26R0006 – Ambient Scribe" to: Brandon Caltabilota, Contract Specialist at Brandon.Caltabilota@va.gov and Meghan McCloskey, Contracting Officer at Meghan.McCloskey@va.gov.

A.3 GOVERNING LAW

Federal law and regulations, including the Federal Acquisition Regulations (FAR), shall govern this Contract/Order. Commercial license agreements may be made a part of this Contract/Order but only if both parties expressly make them an addendum hereto, as permitted by FAR Overhaul 12.107. If the commercial license agreement is not made an addendum, it shall not apply, govern, be a part of or have any effect whatsoever on the Contract/Order; this includes, but is not limited to, any agreement embedded in the computer software (clickwrap), any agreement that is otherwise delivered with or provided to the Government with the commercial computer software or documentation (shrinkwrap), or any other license agreement otherwise referred to in any document. If a commercial license agreement is made an addendum, only those provisions addressing data rights regarding the Government's use, duplication and disclosure of data (e.g., restricted computer software) are included and made a part of this Contract/Order, and only to the extent that those provisions are not duplicative or inconsistent with Federal law, Federal regulation, the incorporated FAR clauses and the provisions of this Contract/Order; those provisions in the commercial license agreement that do not address data rights regarding the Government's use, duplication and disclosure of data shall not be included or made a part of the Contract/Order. Federal law and regulation including, without limitation, the Contract Disputes Act (41 U.S.C. § 7101 *et seq.*), the Anti-Deficiency Act (31 U.S.C. § 1341 *et seq.*), the Competition in Contracting Act (41 U.S.C. § 3301 *et seq.*), the Prompt Payment Act (31 U.S.C. § 3901 *et seq.*), Contracts for Data Processing or Maintenance (38 USC § 5725), and FAR clauses 52.212-4 and 52.227-14 shall supersede, control, and render ineffective any inconsistent, conflicting, or duplicative provision in any commercial license agreement. In the event of conflict between this clause and any provision in the Contract/Order or the commercial license agreement or elsewhere, the terms of this clause shall prevail. The Contractor shall deliver to the Government all data first produced under this Contract/Order with unlimited rights as defined by FAR 52.227-14. Claims of patent or copyright infringement brought against the Government as a party shall be defended by the U.S. Department of Justice (DOJ) in accordance with 28 U.S.C. § 516; at the discretion of DOJ, the Contractor may be allowed reasonable participation in the defense of the litigation. Any additional changes to the Contract/Order must be made by modification (Standard Form 30) and shall only be made by a warranted Contracting Officer. Nothing in this Contract/Order or any commercial license agreement shall be construed as a waiver of sovereign immunity.

A.4 SOFTWARE LICENSE, MAINTENANCE AND TECHNICAL SUPPORT:

(1). Definitions.

- a) Licensee. The term "licensee" shall mean the U.S. Department of Veterans Affairs ("VA") and is synonymous with "Government."
- b) Licensors. The term "licensors" shall mean the Contractor having the necessary license or ownership rights to deliver license, software maintenance and support of the computer software being acquired. The term "Contractor" is the party identified in Block 17a on the SF1449. If the Contractor is a reseller and not the Licensor, the

Contractor remains responsible for performance under this Contract/Order.

- c) Software. The term “software” shall mean the licensed computer software product(s) cited in the Schedule of Supplies/Services.
- d) Maintenance. The term “maintenance” is the process of enhancing and optimizing software, as well as remedying defects. It shall include all new fixes, patches, releases, updates, versions and upgrades, as further defined below.
- e) Technical Support. The term “technical support” refers to the range of services providing assistance for the software via the telephone, email, a website or otherwise.
- f) Release or Update. The term “release” or “update” are terms that refer to a revision of software that contains defect corrections, minor enhancements or improvements of the software’s functionality. This is usually designated by a change in the number to the right of the decimal point (e.g., from Version 5.3 to 5.4). An example of an update is the addition of new hardware.
- g) Version or Upgrade. The term “version” or “upgrade” are terms that refer to a revision of software that contains new or improved functionality. This is usually designated by a change in the number to the left of the decimal point (e.g., from Version 5.4 to 6).

(2). Software License.

- a) Notwithstanding any contrary provisions contained in the Contractor’s standard commercial license, the Contractor agrees that the Government will have the rights that are set forth in paragraph (b) below to use, duplicate or disclose any commercial computer software delivered under this Contract/Order.
- b) The commercial computer software delivered under this Contract/Order may not be used, reproduced, or disclosed by the Government except as provided below or as expressly stated otherwise in this Contract/Order. The commercial computer software may be-
 - Used or copied for use with the computer(s) for which it was acquired, including use at any Government installation to which the computer(s) may be transferred;
 - Used or copied for use with a backup computer if any computer for which it was acquired is inoperative;
 - Reproduced for safekeeping (archives) or backup purposes;
 - Modified, adapted, or combined with other computer software, provided that the modified, adapted, or combined portions of the derivative software incorporating any of the delivered, commercial computer software shall be subject to same restrictions set forth in this Contract/Order;
 - Disclosed to and reproduced for use by support service Contractors or their subcontractors, subject to the same restrictions set forth in this Contract/Order; and
 - Used or copied for use with a replacement computer.

If the commercial computer software is otherwise available without disclosure restrictions, the Contractor licenses it to the Government without disclosure restrictions. The terms and provisions of this Contract/Order shall comply with Federal laws and the Federal Acquisition Regulation.

- c) The Contractor shall affix a notice substantially as follows to any commercial computer software delivered under this Contract/Order: "*Notice*-Notwithstanding any other license agreement that may pertain to, or accompany the delivery of, this computer software, the rights of the Government regarding its use, reproduction and disclosure are as set forth in *Government Contract No.*_____." Any data delivered shall be submitted and protected IAW VA handbook 6500.
- d) Unless otherwise stated in the Schedule of Supplies/Services, the Performance Work Statement or Product Description, the software license provided to the Government is a perpetual, nonexclusive license to use the software.
- e) The Government may use the software in a networked environment.
- f) Any dispute regarding the license grant or usage limitations shall be resolved in accordance with the Disputes Clause incorporated in FAR Overhaul 52.212-4(e).
- g) All limitations of software usage are expressly stated in the Schedule of Supplies/Services and the Performance Work Statement/Product Description.

(3). Software Maintenance and Technical Support.

- a) If the Government desires to continue software maintenance and support beyond the period of performance identified in this Contract/Order, the Government will issue a separate contract or order for maintenance and support. Conversely, if a contract or order for continuing software maintenance and technical support is not received, the Contractor is neither authorized nor permitted to renew any of the previously furnished services.
- b) The Contractor shall provide software support services, which includes periodic updates, enhancements and corrections to the software, and reasonable technical support, all of which are customarily provided by the Contractor to its commercial customers so as to cause the software to perform according to its specifications, documentation or demonstrated claims.
- c) Any telephone support provided by Contractor shall be at no additional cost.
- d) The Contractor shall provide all maintenance services in a timely manner in accordance with the Contractor's customary practice or as defined in the Performance Work Statement or Product Description. However, prolonged delay (exceeding 2 business days) in resolving software problems will be noted in the

Government's various past performance records on the Contractor (e.g., www.cpars.gov).

- e) If the Government allows the maintenance and support to lapse and subsequently wishes to reinstate it, any reinstatement fee charged shall not exceed the amounts that would have been charged if the Government had not allowed the subscription to lapse.

(4). Disabling Software Code. The Government requires delivery of computer software that does not contain any code that will, upon the occurrence or the nonoccurrence of any event, disable the software. Such code includes but is not limited to a computer virus, restrictive key, node lock, time-out or other function, whether implemented by electronic, mechanical, or other means, which limits or hinders the use or access to any computer software based on residency on a specific hardware configuration, frequency of duration of use, or other limiting criteria. If any such disabling code is present, the Contractor agrees to indemnify the Government for all damages suffered as a result of a disabling caused by such code, and the contractor agrees to remove such code upon the Government's request at no extra cost to the Government. Inability of the Contractor to remove the disabling software code will be considered an inexcusable delay and a material breach of contract, and the Government may exercise its right to terminate for cause. In addition, the Government is permitted to remove the code as it deems appropriate and charge the Contractor for consideration for the time and effort expended in removing the code.

(5). Manuals and Publications. Upon Government request, the Contractor shall furnish the most current version of the user manual and publications for all products/services provided under this Contract/Order at no cost.

SECTION B - CONTINUATION OF SF 1449 BLOCKS**B.1 CONTRACT ADMINISTRATION DATA**

(continuation from Standard Form 1449, Block 18A.)

1. Contract Administration: All contract administration matters will be handled by the following individuals:
 - a. CONTRACTOR: TBD
 - b. GOVERNMENT: Contracting Officer 36C10B, Meghan McCloskey
Department of Veterans Affairs
Office of Procurement, Acquisition and Logistics
Technology Acquisition Center
23 Christopher Way
Eatontown, NJ 07724
2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

☒ 52.232-33, Payment by Electronic Funds Transfer – System for Award Management

☐ 52.232-36, Payment by Third Party
3. INVOICES: Invoices shall be submitted in arrears:
 - a. Quarterly ☐
 - b. Semi-Annually ☐
 - c. Other ☒ After Government acceptance of deliverables under individual Task Orders in Section
4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.
5. ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE

B.2 PRICE SCHEDULE

IDIQ ORDERING PERIOD					
<u>CLIN</u>	<u>DESCRIPTION</u>	<u>QTY</u>	<u>UNIT</u>	<u>UNIT PRICE</u>	<u>TOTAL PRICE</u>
0001	Ambient Scribe Solution License IAW Basic PWS Paragraphs 5.1.1, 5.1.5, 5.1.6, 5.1.11, 5.1.12, and 5.1.12.1 through 5.1.12.2. The following Firm-Fixed-Price per user-month rates represent the maximum allowable rates for each Ordering Year. These rates shall apply to all Task Orders issued under this contract during the applicable Ordering Year: Ordering Year 1: \$ _____ Ordering Year 2: \$ _____ Ordering Year 3: \$ _____ Ordering Year 4: \$ _____ Ordering Year 5: \$ _____ The Firm-Fixed-Price per User-Month shall include all enhancements, upgrades, improvements, travel, and additional capabilities that become part of the Contractor's generally available commercial Ambient Scribe solution during the Period of Performance. The Government shall not be required to pay additional fees for functionality incorporated into the Contractor's standard commercial offering. Offerors shall incorporate all anticipated costs associated with such commercially available product updates and capability integration into the proposed Firm-Fixed-Price per User-Month. No additional charges shall be permitted for functionality incorporated into the Contractor's generally available commercial solution.	Maximum 4,700,000	User Months	\$	\$

0002	Platform Functional Requirements IAW Basic PWS Paragraphs 5.1.2, 5.1.2.1 through 5.1.2.3, and 5.1.7 Specific task(s) and deliverable(s) shall be defined in each individual Task Order.	1	LO	\$	\$
0003	EHR Integration IAW Basic PWS Paragraphs 5.1.3 and 5.1.4 Specific task(s) and deliverable(s) shall be defined in each individual Task Order.	1	EA	\$	\$
0004	Site Configurations IAW Basic PWS Paragraph 5.1.8 Specific task(s) and deliverable(s) shall be defined in each individual Task Order.	1	LO	\$	\$
0005	Additional Capabilities IAW Basic PWS Paragraph 5.1.9 Specific task(s) and deliverable(s) shall be defined in each individual Task Order.	1	LO	\$	\$
0006	Specialty Service Templates IAW Basic PWS Paragraph 5.1.10. Specific task(s) and deliverable(s) shall be defined in each individual Task Order.	120	EA	\$	\$
0007	Transition and Orientation Support IAW Basic PWS Paragraph 5.2. Specific task(s) and deliverable(s) shall be defined in each individual Task Order.	1	LO	NSP	NSP
0008	Contract Management IAW Basic PWS Paragraph 5.3, inclusive of all subparagraphs Specific task(s) and deliverable(s) shall be defined in each individual Task Order.	20	EA	\$	\$
0008AA	Monthly Report IAW Basic PWS Paragraph 5.3.3.1. Due on the first business day of the month following contract award and on	1	LO	NSP	NSP

	the first business day of each subsequent month thereafter.				
0008AB	Quarterly Summary Report IAW Basic PWS Paragraph 5.3.3.2. Due on the first business day of the quarter following contract award and on the first business day of each subsequent quarter thereafter.	1	LO	NSP	NSP
0009	Custom-Developed Code Package IAW Basic PWS Paragraph 6.1.11. Due 2 days after each release, throughout the development process Electronic submission to the VA GitHub Source Code Inventory Repository.	1	LO	NSP	NSP
0010	Contractor Staff Roster IAW Basic PWS Paragraph 6.2.2. Due 3 days after contract award and updated throughout the PoP.	1	LO	NSP	NSP
0011	AI System/LLM Development and Operation Document Package IAW Basic PWS Paragraph 6.7.1. Due 15 days ARO and updated annually thereafter as revisions require.	1	LO	NSP	NSP
0012	Compliance Monitoring and Reporting Plan IAW Basic PWS Paragraph 6.7.2. Due 30 days ARO.	1	LO	NSP	NSP
0013	Corrective Action Plan IAW Basic PWS Paragraph 6.7.2. Due 10 business days after identification of any deviation of AI Principles.	1	LO	NSP	NSP
0014	AI Model/LLM Change Disclosure IAW Basic PWS Paragraph 6.7.3. Due 30 days prior to implementation of change.	1	LO	NSP	NSP

Contract Maximum/Minimum Ceiling:

In accordance with (IAW) Section C, clause 52.216-22, "Indefinite Quantity," the Maximum Overall Value of the Ambient Scribe IDIQ contracts is \$775,720,000.00. This amount represents the total cumulative dollar value of all Task Orders that may be

issued under this contract during the ordering period. IAW Section C, clause 52.216-22, the Minimum Guaranteed Value under this contract is \$2,500.00, which shall be satisfied through the issuance of one or more Task Orders. The Government reserves the right to award initial orders at the time of the basic contract award on a sole source basis pursuant to FAR 16.507-6(b)(4) at amounts which may exceed the minimum guaranteed value.

No order under this Ambient Scribe IDIQ contract shall be awarded in excess of the total remaining contract ceiling amount. No Task Order shall cause the cumulative value of all orders issued under this contract to exceed the Maximum Overall Value established herein.

For CLIN 0001, orders are further limited to a cumulative maximum quantity of 4,700,000 User-Months, and shall not exceed the associated Not-to-Exceed contract ceiling amount established in Section B. The Government is not obligated to order the maximum quantity or value.

B.3 PERFORMANCE WORK STATEMENT



PERFORMANCE WORK STATEMENT (PWS) DEPARTMENT OF VETERANS AFFAIRS

Veterans Health Administration
Digital Health Office

Ambient Scribe

Date: February 27, 2026
VA-26-00012979
PWS Version Number: 1.9

1.0 BACKGROUND

The mission of the Department of Veterans Affairs (VA) Veterans Health Administration (VHA) is to provide superior healthcare services to Veterans of the United States. As the largest integrated healthcare system in the country, VA is uniquely positioned to develop and provide advanced healthcare capabilities to over 9 million Veterans. One significant challenge facing the VA and its ability to deliver high quality and reliable patient care to our Nation's Veterans is the increase in demand for veteran patients to be seen within the VA healthcare system. In the short window of time allocated for each patient appointment, providers have a multitude of clinical and administrative tasks to be completed. This increases risk of important information being omitted due to rushed interviews and contributes to provider burn out. The myriad of tasks expected of providers beyond caring for patients puts significant cognitive burden and increased strain on them professionally. This strain has the potential to negatively impact patient care. It can also contribute to provider attrition, causing additional impact to Veterans and clinical staff.

One method to reduce the risk of missing vital clinical information that impacts patient care planning and reducing cognitive burden for our providers is the use of ambient scribe technology. Artificial Intelligence (AI) ambient scribes utilize a microphone on a secure device. The ambient AI scribe transcribes patient encounters. It then uses machine learning and natural-language processing to summarize the conversation's clinical content and produce a transcribed note documenting the visit. Such transcribed conversations between patients and providers automatically leverage AI technologies to create notes in the appropriate format (generate clinical documentation) and summarize a patient's visit. Automating these tasks increases accuracy of information, saves the providers time, and reduces their mental strain. Visit notes that include a patient's care plan is a critical component of treatment and care delivery. The software functions as a medical and clinical system, equipment, device, or software (MCSEDS) as defined in VA Directive 6008.

Ambient scribe technology also enables other labor-saving capabilities to include but not limited to: pre and post visit charting to summarize important information prior to visit by either completing the task with AI or integrating with provider pre-charted note, coding support, order capture, after-visit summaries, drafting care plans and other capabilities.

The ambient scribing solution required is unique to the operational environment and specific challenges faced by the Veterans Health Administration (VHA). In January 2024, VHA undertook an AI Technical Sprint challenge to ensure that potential solutions were rigorously tested through a competitive and impartial evaluation process under H.R. 4521-Bioeconomy Research and Development Act Of 2021 [America COMPETES Act of 2022]. The goal of the competition was to identify the top AI solutions identified through the VHA AI Tech Sprint Track 1: Ambient Dictation of Clinical Encounters.

Throughout the Technical Sprint, many solutions demonstrated superior technical maturity and clinical performance. Their development was closely aligned with the urgent needs of the VHA, specifically targeting enhancements in provider burnout and clinical documentation efficiencies. IT professionals and healthcare providers assessed

these solutions for their maturity and practical applicability in real-world clinical settings, ensuring that they met the highest standards for operational readiness.

Moreover, the effectiveness and safety of these solutions were evaluated through a series of blind scoring assessments. Physicians compared the AI-generated outputs against those produced by human clinicians, establishing their accuracy and reliability without bias. Additionally, their usability and potential for seamless integration into the VHA's existing EHR systems were critically assessed to determine their capability to enhance operational continuity and data consistency within the VA health care system. This approach ensured a thorough evaluation of potential Contractors in a manner that fostered broad competition and verified that the selected Contractors met legal, technical, and operational requirements. Evaluations concluded in May 2024.

2.0 APPLICABLE DOCUMENTS

In the performance of the tasks associated with this Performance Work Statement, the Contractor shall comply with the following:

1. "Federal Information Security Modernization Act of 2014"
2. Federal Information Processing Standards (FIPS) Publication 140-3, "Security Requirements for Cryptographic Modules", March 22, 2019
3. FIPS Pub 199. "Standards for Security Categorization of Federal Information and Information Systems," February 2004
4. FIPS Pub 200, "Minimum Security Requirements for Federal Information and Information Systems," March 2006
5. FIPS Pub 201-3, "Personal Identity Verification of Federal Employees and Contractors," January 2022
6. 10 U.S.C. § 2224, "Defense Information Assurance Program", as amended
7. 5 U.S.C. § 552a, as amended, "The Privacy Act of 1974"
8. Public Law 109-461 (P.L. 109-461), Veterans Benefits, Health Care, and Information Technology Act of 2006, as amended, Title IX, Information Security Matters
9. 42 U.S.C. § 2000d "Title VI of the Civil Rights Act of 1964", as amended
10. VA Directive 0710, "Personnel Security and Suitability Program," June 4, 2010, <https://www.va.gov/vapubs/index.cfm>
11. VA Handbook 0710, "Personnel Security and Suitability Program," May 2, 2016, <https://www.va.gov/vapubs/index.cfm>
12. VA Directive 6102, "Internet/Intranet Services," August 5, 2019
13. 36 C.F.R. Part 1194 "Information and Communication Technology Standards and Guidelines," as amended
14. Office of Management and Budget (OMB) Circular A-130, "Managing Federal Information as a Strategic Resource," July 28, 2016
15. 32 C.F.R. Part 199, "Civilian Health and Medical Program of the Uniformed Services (CHAMPUS)", as amended
16. NIST SP 800-66 Rev. 2, "Implementing the Health Insurance Portability and Accountability Act (HIPAA) Security Rule: A Cybersecurity Resource Guide," February 2024
17. 45 C.F.R Parts 160 and 164, Subparts A and E, the Standards for Privacy of Individually Identifiable Health Information ("Privacy Rule"); and 45 C.F.R.

- Parts 160 and 164, Subparts A and C, the Security Standard ("Security Rule"); as amended
18. Sections 504 and 508 of the Rehabilitation Act (29 U.S.C. § 794d), as amended
 19. Homeland Security Presidential Directive (12) (HSPD-12), August 27, 2004
 20. VA Directive 6500, "VA Cybersecurity Program," February 24, 2021 (see VA NOTICE 24-18, dated September 27, 2024, "Update to VA Directive 6500 Cybersecurity Program", and VA Notice 25-07, dated 3/18/25, "Amending VA Directive 6500 to incorporate M-24-15")
 21. VA Handbook 6500, "Risk Management Framework for VA Information Systems VA Information Security Program," February 24, 2021 (see VA Notice 25-01, dated October 15, 2024, "Update to VA Handbook 6500 Risk Management Framework for VA Information Systems VA Information Security Program", and VA Notice 25-06, dated 3/18/25, "Amending VA Directive 6500 to incorporate M-24-15")
 22. VA Handbook 6500.2, "Management of Breaches Involving Sensitive Personal Information (SPI)," June 30, 2023
 23. VA Handbook 6500.6, "Contract Security," March 12, 2010 (see VA Notice 24-12, dated April 22, 2024, "Update to VA Handbook 6500.6, Contract Security, Appendix C VA Information and Information System Security/Privacy Language For Inclusion Into Contracts, As Appropriate")
 24. VA Handbook 6500.8, "Information System Contingency Planning," March 25, 2025
 25. VA Handbook 6500.10, "Mobile Device Security Policy," February 15, 2018
 26. VA Handbook 6500.11, "VA Firewall Configuration," August 22, 2017
 27. OIT Process Asset Library (PAL), [OIT Process Asset Library](#).
 28. One-VA Technical Reference Model (TRM) (reference at <https://www.va.gov/trm/TRMHomePage.aspx>)
 29. VA Directive 6508, "Implementation of Privacy Threshold Analysis and Privacy Impact Assessment," October 15, 2014
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3.0 SCOPE OF WORK

The purpose of this Indefinite Delivery Indefinite Quantity (IDIQ) contract is to provide a Commercial-Off-the-Shelf (COTS), cloud-based, ambient scribe solution to transcribe clinical encounters, generate notes, and other AI advanced functionalities to improve the efficiency of medical care utilizing a Software as a Service (SaaS) delivery model with AI techniques and technologies. This solution shall integrate with VA's EHR systems and workflows so providers can initiate encounter recordings. This mitigates the need for manual entry of patient identifying information and enables automatic insertion of draft notes into EHR.

The Contractor shall not initiate contact with, or conduct demonstrations, interviews, or other engagements at any site actively participating in an implementation effort under this contract if the Contractor has not been awarded a Task Order for that site, or for any other site falling under the scope of this contract, unless expressly authorized in writing by the COR or VA PM. This restriction is intended to preserve the integrity of site activities and prevent unsolicited vendor influence, as well as to preserve the integrity of future task order competitions. Unauthorized engagement may be considered a breach of contract and/or result in future restrictions on competition.

4.0 PERFORMANCE DETAILS

4.1 CONTRACT TYPE

This is an IDIQ Multiple Award Task Order (MATO) contract. Individual Task Orders (TO) shall be issued on a Firm-Fixed-Price basis.

4.2 ORDERING PERIOD

The ordering period for the basic contract shall be 5-years following the date of award.

4.3 HOURS OF WORK

Any work at the Government site shall not take place on Federal holidays or weekends unless directed by the Contracting Officer (CO).

There are 11 Federal holidays set by law (USC Title 5 Section 6103) that VA follows:

Under current definitions, five are set by date:

New Year's Day	January 1
Juneteenth	June 19
Independence Day	July 4
Veterans Day	November 11
Christmas Day	December 25

If any of the above falls on a Saturday, then Friday shall be observed as a holiday. Similarly, if one falls on a Sunday, then Monday shall be observed as a holiday.

The other six are set by a day of the week and month:

Martin Luther King's Birthday	Third Monday in January
Washington's Birthday	Third Monday in February
Memorial Day	Last Monday in May
Labor Day	First Monday in September
Columbus Day	Second Monday in October
Thanksgiving	Fourth Thursday in November

4.4 PLACE OF PERFORMANCE

Products and services ordered under this contract shall be delivered to and installed at VA locations within the continental United States (CONUS) and/or outside the continental United States (OCONUS) as specified in individual Task Orders. Incidental services, such as training, shall be provided at these locations as requested by VA. Work may be performed at Contractor facilities or remote locations other than Contractor facilities with prior concurrence from the Contracting Officer Representative (COR).

4.5 TRAVEL

Travel shall be in accordance with individual TO requirements. Travel details must be provided to and approved in writing by the COR or the Government designee prior to the commencement of travel. All travel shall be in accordance with (IAW) the Federal Travel Regulations (FTR). OCONUS travel may require additional authorization and approvals as specified in the individual TO.

5.0 SPECIFIC TASKS AND DELIVERABLES

The Contractor shall provide and/or acquire the services and products required by individual TOs pursuant to the requirements specified below. The Contractor shall provide an Ambient Scribe solution and all associated licenses, applications and services necessary to meet the requirements defined in this PWS.

5.1 FUNCTIONAL REQUIREMENTS

Individual Task Orders may encompass more than one functional requirement listed below.

5.1.1 AMBIENT SCRIBE

The advanced AI-enabled tools for ambient scribing focus on enhancing clinical documentation across primary care, mental health, and specialty care settings. The solution shall meet the following requirements:

- **Transcription and Note Generation:** Automatically extract transcripts and key details from ambient recordings of patient encounters, creating traceable, high-fidelity medical records to include capabilities to populate diversified note templates.
- **Interoperability and Integration:** Seamlessly integrate with existing VA health system information technologies, particularly the Electronic Health Record (EHR) systems, to ensure smooth operational continuity and data consistency.

- Currently known additional integrations include, but are not limited to, pre-charting, medical coding, order processing, care plans, patient summaries, and medical record interrogation
- Security Compliance: Adhere to stringent VA privacy and security standards for the protection of patient data.
- Advanced Functionalities: Provide continuous improvements to include, but not limited to: record query, recommend diagnoses and referrals, inpatient discharge summaries, nursing patient management, pre-charting capabilities and maintain high performance even in challenging clinical settings.
- Patient Communications: Generate patient-facing summaries (After Visit Summaries and Discharge Summaries) that include, but not limited to: educational materials, reminders, and follow-up recommendations which adhere to clinical documentation compliance standards.

5.1.2 PLATFORM FUNCTIONAL REQUIREMENTS

The ambient dictation system shall run passively on Government equipment or personal equipment managed under VA's Bring Your Own Device program during clinical encounters and generate draft clinical documentation following the encounter in near real-time with a maximum limit of two minutes. The system shall work in a variety of clinical settings, including those with poor wireless signals, poor cellular data, and in a variety of room sizes and setups. Providers shall have the opportunity to edit any AI generated material prior to signing it in the EHR (Vista and CPRS).

5.1.2.1 FedRAMP

The Contractor shall provide a cloud-hosted, Commercial Off-the-Shelf (COTS) ambient dictation SaaS solution, on a Contractor-provided infrastructure that is compliant with the Federal Risk Authorization Management Program (FedRAMP). The solution will be authorized at the Moderate Impact Level in accordance with the Day 1 TO, and as mandated by Federal laws and policies, including making available any documentation, physical access, and logical access needed to support this requirement. For specific platform functional requirements, the Contractor shall visit the FedRAMP website at www.fedramp.gov. For questions about FedRAMP, the Contractor shall email info@fedramp.gov.

5.1.2.2 AUTHORITY TO OPERATE

The Contractor shall obtain an agency issued ATO for their provided solution from the VA. Joint Authorization Board (JAB) ATO is not acceptable as a substitute. An approved ATO shall be required for the entire PoP.

The Contractor shall submit for an agency ATO upon Task Order award. Specific requirements will be included in the Task Order. Failure to obtain an agency ATO shall be considered a breach of contract.

5.1.2.3 SaaS SOLUTION

The Contractor shall provide a SaaS solution that shall include a clinician facing web-based application and mobile application compatible with Microsoft (MS) Windows,

Apple iOS, and Android operating system (OS). The Contractor provided mobile application shall only be available on the VA App Store.

5.1.3 AMBIENT DICTATION IMPLEMENTATION

The Contractor shall implement the ambient dictation capability throughout identified Veterans Integrated Service Networks (VISN). It is expected that EHR system integration will occur during the time the contractor is awaiting an ATO. The Contractor shall provide a secure URL to enable access, set up, and configuring of the platform at each site. The Contractor shall provide operational training, support and guidance to medical center personnel on the use of the software. The solutions shall maintain and make available any transcripts or recordings for 30 days to maintain compliance with federal record schedules for intermediary documents. All intermediary documents and recordings will be deleted immediately upon day 31. Individual records may be flagged for retention longer than 30 days should a legal requirement exist such as a FOIA. Request for retention shall be made by the COR and be available until the COR requests deletion.

5.1.4 EHR INTEGRATION

The solution shall be integrated with the EHR and workflows such that providers can conduct pre-charting, initiate encounter recording without manual entry of patient identifying information, and draft notes can be automatically inserted into the EHR without copy and paste manual effort. The integration must comply with VA authorization and authentication standards, and integrate with APIs exposed by VA. The Contractor shall collaborate with VA technical teams to develop and test the integration workflows.

Finally, the Contractor shall support VA efforts to measure the solution's impact and collaborate with VA to identify additional integrations needed for scalable use beyond the initial capabilities.

5.1.5 TRAINING

The Contractor shall:

1. Provide remote (virtual) training for VA clinicians who have been provided licenses. Training dates shall be coordinated with VA PM and individual site points of contact (POCs). Any in person or localized training shall be recorded for future reference. All training recordings captured during VA training sessions shall be provided to COR or their designee and considered VA property. The Training shall include an overview of the platform and detailed walkthrough of the capabilities.
2. Provide training materials to VA five (5) days prior to any training session. The Training Materials shall provide role-based training information and a user guide to address how to utilize the ambient dictation platform. Material shall include but not be limited to a detailed user manual and quick reference guide provided in digital formats.

5.1.6 TECHNICAL SUPPORT

Provide technical support (online and via phone) during normal duty hours: Monday through Friday, 7:00 a.m.-5:30 p.m. local time in accordance with the implementing facility's respective time zone. Technical support shall troubleshoot and resolve technical, functional, and access issues. The Contractor shall propose call center KPIs and benchmarks in proposal but shall include at a minimum Average Speed to Answer of less than 1 minute, Abandonment Rate less than 5%, First Call Resolution Rate, and Customer Satisfaction or Net Promoter Score.

5.1.7 ASSESSMENT, AUTHORIZATION, AND CONTINUOUS MONITORING

The Contractor shall adhere to all applicable FIPS, NIST, FISMA and FedRAMP standards and requirements related to assessment, authorization, and continuous monitoring.

The Contractor shall provide and maintain an ATO in accordance with the guidance provided in VA Directive and Handbook 6500.

5.1.8 SITE CONFIGURATIONS

The solution shall be configured to work within VA medical facilities, designated by their station numbers and associated clinical note templates, as identified in each individual TO.

5.1.9 ADDITIONAL CAPABILITIES

VA's requirements are expected to evolve over the course of the IDIQ. To support evolving Government requirements while minimizing risk to both the Contractor and VA, the parties shall engage in ad hoc future-capability planning cycles discussing capabilities on the vendor's roadmap relative to VA mission needs. Future requirements may include, but are not limited to, additional data connections, software, enhanced AI-enabled functionality, and tools.

The Contractor shall meet with VA once a year to provide visibility into the Contractor's roadmap of future capabilities. The Contractor's roadmap shall detail capabilities that the Contractor is anticipating to develop as part of its generally available (GA) product offerings over one-, two-, and three-year time periods.

The Contractor shall include VA in all user groups and other planning activities that other major clients participate in and that are used to inform the prioritization of the Contractor's development backlog. VA may provide input regarding capability prioritization; however, inclusion in planning activities does not constitute a commitment by the Government to acquire any specific capability.

The Contractor shall provide VA the right to acquire additional modules or capabilities developed during the PoP of this contract, subject to availability, scope, and pricing established in accordance with the IDIQ.

The Contractor shall coordinate with VA staff to thoroughly test all additional capabilities prior to deployment in a production environment. Testing shall be conducted by VA staff in real time at the designated VA testing facility.

Upon completion of each additional capability test, VA will review the outputs and certify the additional capability. The Contractor shall not deploy any additional capabilities into production until VA provides the certification statement for the specific additional capability.

The additional capabilities shall comply with applicable VA security, privacy, policy, or other VA requirements which shall be identified at the time of deployment and specified in the applicable Task Order.

5.1.10 SPECIALTY SERVICE TEMPLATES

The Contractor shall support the expansion of the Ambient Scribe Solution into specialty care services. The Contractor shall provide the algorithm training for specialty care services in the format requested by the VA. VA will provide supplementary note templates and access to subject matter experts to ensure the ability to capture essential information for patient encounters. Specific tasks and deliverables will be specified in the TO.

5.1.11 INTEGRATION OF ADDITIONAL AI ENABLED CAPABILITIES

The Government reserves the right to incorporate additional AI-enabled capabilities that support clinical documentation, workflow optimization, and/or clinical decision support, provided such capabilities fall within the general scope of this contract.

As new capabilities are developed and used by the commercial industry or the Government, the VA and/or Contractor may identify these technologies, and propose necessary additions, modifications, upgrades, enhancements, and improvements.

The Contractor shall maintain, and provide upon request, current documentation of publicly available pricing for relevant capabilities. The Government reserves the right to validate proposed pricing through independent market research or third-party verification. This pricing structure ensures that any future expansion of capabilities remains within the scope of the original competition and is consistent with applicable acquisition regulations.

5.1.12 Licensing

The Contractor shall provide Ambient Scribe licenses as specified in each TO. The Contractor shall follow the activation and deactivation procedures in Section 5.1.12.1 and 5.1.12.2 of this PWS, unless otherwise specified in the TO.

5.1.12.1 Activation

The Contractor shall provide and activate licenses and associated accounts upon the COR's, or other VA official as specified in the TO, request. The Contractor shall complete activation requests within three business days. The Contractor shall notify the

COR, or specified VA official, when the licenses and associated accounts are ready for user access. The Contractor's notification shall include, at minimum, the number of licenses activated, activation date, and any necessary user access details.

5.1.12.2 Deactivation

The Ambient Scribe Solution shall have the capability to automatically identify and flag licenses that have registered no usage activity for a period of 30 consecutive days. The Solution shall generate an electronic notification listing these unused licenses and transmit it to the IDIQ COR and TO COR, or other VA official, as specified in the TO. The electronic notification shall include the affected user accounts and the associated licenses.

The Contractor shall accommodate account deactivation requests from the COR, or other VA official, as specified in the TO. Upon receipt of request, the Contractor shall complete the deactivation activities within three business days, or on a later date specified by the COR, or other VA official, provided the request is received with three business days lead time.

5.2 TRANSITION AND ORIENTATION SUPPORT

The Contractor shall perform transition and orientation services (e.g. develop a Phase-In/Phase-Out Transition Plan) to ensure continuity of services as specified in the individual TO. Transition and orientation support may include transitioning support services to Government or Contractor personnel.

5.3 CONTRACT MANAGEMENT

The Contractor shall provide contract and TO level management. The Contractor shall work closely with the Government to manage contractual and programmatic issues that arise during performance of the contract. The Contractor shall be responsible for the execution of all contract tasks to include, but not be limited to: program reviews; kickoff meetings; status updates; various reporting requirements; and day-to-day concerns. A national Government CO and COR will address enterprise-wide issues. Ordering VA facilities will designate a facility COR/POC that the Contractor shall work with to coordinate facility orders.

5.3.1 TASK ORDER KICKOFF MEETINGS

If required by the ordering facility, the Contractor shall participate in a TO level kickoff meeting and brief the Government on how it intends to meet the requirements of the TO. The kickoff meeting shall be held virtually. Specific requirements will be detailed in the individual Task Orders.

5.3.2 PROJECT MANAGEMENT

Contractor shall not perform inherently Governmental functions including: decision-making, supervision of Government employees, supervision of other Contractors on other contracts, and activities that create the appearance of performing such functions.

Contractor shall deliver all written artifacts using straightforward language. Technical and mathematical terms shall only be used when accompanied by a glossary. Deliverables shall be accepted based, in part, on satisfaction of Section 508 of the Rehabilitation Act of 1973. VA reserves the right to test for Section 508 Compliance before delivery. The Contractor shall be able to demonstrate Section 508 Compliance upon delivery.

Contractor shall submit final written deliverables in Microsoft Word, PowerPoint, or Excel format. Contractor shall provide files converted to Adobe PDF format upon request by the COR or Program Manager (PM).

The Government will review each deliverable and provide feedback/comments. After Government review, the Contractor shall have five (5) business days to incorporate feedback/comments and make appropriate revisions. The Contractor shall provide the revised version of each deliverable to the Contracting Officer Representative (COR). The COR will review and determine final acceptance by the Government.

5.3.3 REPORTING REQUIREMENTS

5.3.3.1 MONTHLY REPORTS

The Contractor shall furnish to VA, for the purposes of evaluation, oversight, and continuous improvement, access to data generated by or through the Ambient Scribe AI solution. The Contractor shall make the data available to VA either through reporting dashboards or delivered via secure file transfer as requested by the COR or their designee.

Data provided shall include, at a minimum, the following categories of data. The examples listed are illustrative and not intended to be exhaustive:

1. Monthly License Usage Reports – including number of activated and deactivated licenses throughout the VA.
2. Encounter Metadata – such as timestamps, user and license identifiers, site, specialty, device type, and software version.
3. Utilization Metrics – including per-license and per-encounter usage data.
4. Transcripts – textual transcripts with speaker attribution and timing information.
5. Draft and Final Notes – including draft content, delivery status, and edit trace from draft to final.
6. AI-Generated Recommendations and Clinical Decision Support – including suggested codes, clinical reminders, alerts, and other structured outputs intended to support documentation or care.
7. End User Feedback & Support Requests – including structured and unstructured feedback submitted by users.

The Contractor shall retain all data associated with the encounters in accordance with General Records Schedules 5.2, Transitory and Intermediary Records.

If a Contractor Project Management Plan (CPMP) is required in an individual TO, the Contractor shall monitor performance against the Task Order CPMP and report all deviations. It is expected that the Contractor shall keep in communication with the CO

and COR so that issues that arise are transparent to both parties to prevent escalation of outstanding issues.

Deliverable:

- A. Monthly Report

5.3.3.2 QUARTERLY SUMMARY REPORT

The Contractor shall provide, via email, the national COR and CO with Quarterly Summary Reports in Microsoft Office format. The Summary Reports shall cover all Task Orders issued and completed during the reporting period and Task Orders planned, to the extent known, for the subsequent reporting period. The report shall track the cumulative contract ceiling. The Summary Report shall identify current implementation status, any problems that have arisen, and a description of how the problems were resolved. If problems have not been completely resolved, the Contractor shall provide an explanation including its plan and timeframe for resolving the issue. It is expected that the Contractor will maintain timely communication with VA so that the issues that arise are transparent to both parties to prevent escalation of outstanding issues. The Quarterly Summary Reports shall include:

1. Contract/Order Number
2. Date of Award
3. Facility COR/POC Name, Telephone Number, Location
4. Integrated Funds Distribution Control Point Activity Accounting & Procurement (IFCAP) Purchase Order Number
5. Total Dollars Obligated
6. Software Version Number, License Type, and Term
7. Technical Support Toll Free Telephone Number and Website

Deliverable:

- A. Quarterly Summary Report

5.3.4 PRE-AWARD TASK ORDER PROCEDURES

5.3.4.1 TASK EXECUTION PLAN (TEP)

Fair opportunity requirements shall be IAW applicable statutes, regulations, and case law. RTEP(s) will be issued to eligible IDIQ contract holders to compete Task Orders under this contract. The Government anticipates issuing RTEPs to select one Contractor per VISN; however, the Government reserves the right to structure competitions as appropriate to meet program requirements. The Government's RTEP does NOT constitute an authorization to start work.

Within seven (7) work days of receipt of the RTEP, or unless otherwise specified in the RTEP, the Contractor shall submit one TEP IAW the format provided below unless otherwise specified by the CO. The following information shall be provided and submitted to the CO:

A. In addition to the information requested in the RTEP, the following shall be addressed in every TEP:

1. Proposal Summary Volume including:
 - a. Task number.
 - b. Date submitted.
 - c. Contractor's name, Unique Entity Identifier (UEI) and Commercial and Government Entity (CAGE) Code.
 - d. Contractor task leader contact information for questions.
 - e. Subcontractor(s) shall be identified by name, UEI and CAGE Code at all tiers (as applicable).
 - f. Proposed start and finish dates.
 - g. Proposed total price.
 - h. Offerors are hereby advised that any Offeror-imposed terms and conditions which deviate from the Government's material terms and conditions established by the RTEP, may render the Offeror's proposal Unacceptable, and thus ineligible for award.
 - i. Duration for which proposal is valid (minimum 90 days)
 - j. VAAR 852.209-70 is in effect for all RTEPs issued and the contractor should provide a statement IAW VAAR 852.209-70(b), when applicable
 - k. Acknowledgement of Amendments.

B. The following shall be addressed:

A price proposal volume shall be submitted in Microsoft Excel Spreadsheet format and shall contain the following:

1. The first tab shall be a summary to include a top level rollup of the total dollars and percentages by labor, materials, travel, ODCs, and total Task Order price.
2. The Contractor shall submit, as a separate tab, a completed Section B price schedule inclusive of all priced line items for base period and any options.
3. Offerors are hereby advised that any Pricing Assumptions which deviate from the Government's requirements or material terms and conditions established by the RTEP, may render the Offeror's proposal Unacceptable, and thus ineligible for award.
4. "Information Other than Cost or Pricing Data" may be required where there is not "adequate price competition" as defined in FAR 15.403-1(b).

C. The following pertains to the preparation and submission of all TEPs:

1. Contractors are NOT to submit past performance as a part of their TEP, unless specified in the RTEP.
2. TEP Format
 - a. Proposal Summary Volume
 - i Microsoft (MS) Word Office 365, only. The Offeror shall certify that its entire proposal, including all volumes, has been submitted in the MS Office 365 Program.
 - b. Technical Volume
 - i The Technical Volume shall be submitted in MS Word, Office 365, only. Compliance with the submission instructions shall be measured using the font size, scale, spacing and margin indicators in MS Word, Office 365.

- ii No marketing materials; information relevant to the requirement only
- c. Price Volume
 - i The Price Evaluation Spreadsheet shall be submitted in MS Excel Office 365, only.
- 3. Page Limitations. When page limitations are specified in the RTEP, the following format shall apply:

The Summary and Technical Volumes shall be submitted as a MS Word, Office 365 file only. Price Volume shall be submitted in Microsoft Excel. Page size shall be no greater than 8 1/2" x 11". The top, bottom, left and right margins shall be a minimum of one inch each. Font size shall be no smaller than 12-point. Times New Roman fonts are required. Characters shall be set at no less than normal spacing and 100% scale. Tables and Illustrations are not subject to the font and spacing requirements. All proposal pages, including those containing Tables or Illustrations shall comply with the margin requirements. Tables and Illustrations shall be legible at 100% zoom. If a Table or Illustration is illegible at 100% zoom, then the entire Table or Illustration will be deemed to be in violation and will not be evaluated. Line spacing shall be set at no less than single space. Page numbers, company logos, and headers and footers may be within the page margins ONLY, and are not bound by the 12-point font requirement. Footnotes to text shall not be used. If the Offeror submits annexes, documentation, attachments or the like, not specifically required by this solicitation, such will count against the Offeror's page limitations unless otherwise indicated in the specific Volume instructions. Pages in violation of these instructions, either by exceeding the margin, font or spacing restrictions or by exceeding the total page limit for a particular volume, will not be evaluated. Pages not evaluated due to violation of the margin, font or spacing restrictions will not count against the page limitations. The page count will be determined by counting the pages in the order they come up in the print layout view. The Cover Page and Table of Contents, and/or a glossary of abbreviations or acronyms will not be included in the page count however any additional matrices, appendices, etc. will count against page limitation. Cover letters shall not be included in the Technical Volume.

5.3.4.2 TEP EVALUATION

To the greatest extent possible, VA shall evaluate TEP submittals in an expedited manner. Questions and clarifications may be required which can prolong the evaluation period. When requested by the CO, the Contractor shall provide a revised TEP to address changes. All TEPs shall be subject to evaluation by a team of Government personnel.

5.3.4.3 ISSUANCE OF TASK ORDERS

Upon Government approval of the TEP and designation of an appropriate fund cite, the CO shall issue a Task Order to the Contractor. Contractor work shall commence only after issuance of the Task Order by the CO. The Government shall provide notification of Task Order award to both the successful and unsuccessful Offerors.

6.0 GENERAL REQUIREMENTS

6.1 ENTERPRISE AND IT FRAMEWORK

6.1.1 VA TECHNICAL REFERENCE MODEL

The Contractor shall comply with the VA OIT Technical Reference Model (VA TRM). Compliance with the VA TRM is achieved by using only technologies and standards that are listed as approved for use in the VA TRM. The Contractor shall provide all necessary information requested by VA to ensure TRM approval is obtained prior to use on VA's network.

6.1.2 ZERO TRUST – VA CRITICAL SECURITY CONTROLS

VA has established minimum mandatory security requirements and requires that any network connected software system or service must meet the VA Critical Security Controls as outlined in the VA Memorandum, "VA Security Controls", <https://www.voa.va.gov/DocumentView.aspx?DocumentID=5010>. VA Critical Security Controls identify the minimum mandatory requirements that must be implemented across all VA enterprise infrastructure, cloud computing environments, information systems, networks, and specialized devices (medical devices/systems, special-purpose systems, and research scientific computing devices) that process, store, and/or transmit VA data. Effective July 1, 2025, the Contractor shall implement these VA Critical Security Controls, within any network connected software system or service prior to being authorized for use in the VA. This functional requirement is not negotiable, and Plan of Action & Milestones (POAM) will not be accepted in the event these controls cannot be implemented for new systems. Critical Security Controls are intended to increase VA's security posture and provide security and privacy risk visibility into the VA network and is not a new requirement. The Contractor's failure to maintain these VA Critical Controls after implementation will result in VA discontinuing the use of the system.

6.1.3 FEDERAL IDENTITY, CREDENTIAL, AND ACCESS MANAGEMENT (FICAM)

The Contractor shall ensure Commercial Off-The-Shelf (COTS) product(s), software configuration and customization, and/or new software are Personal Identity Verification (PIV) card-enabled by accepting HSPD-12 PIV credentials using [VA Enterprise Architecture \(EA\)](#), and VA Identity and Access Management (IAM) approved [Enterprise Technology Guidelines \(ETG\)](#). The Contractor shall ensure all Contractor delivered applications and systems comply with the VA Identity, Credential, and Access Management policies and guidelines set forth in Executive Order 14028, VA Handbook 6510 VA Identity and Access Management, VA Handbook 0735 Homeland Security Presidential Directive 12 (HSPD-12) Program, CISA Binding Operational Directive 23-01, and align with the Federal Identity, Credential, and Access Management Roadmap and Implementation Guidance v2.0.

The Contractor shall ensure all Contractor delivered applications and systems provide user authentication services compliant with the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-63-3, VA Handbook 6500, and VA IAM enterprise requirements for direct, assertion based authentication, and/or trust based

authentication, as determined by the ETGs. Direct authentication at a minimum must include Public Key Infrastructure (PKI) based authentication supportive of PIV card and/or Common Access Card (CAC), as determined by the business need.

The Contractor shall ensure all Contractor delivered applications and systems conform to the specific Identity and Access Management PIV requirements set forth in the Office of Management and Budget (OMB) Memoranda [M-05-24](#), [M-19-17](#), [M-22-09](#), and NIST Federal Information Processing Standard (FIPS) 201-3. Contractor delivered applications and systems shall be on the FIPS 201 Approved Product List (APL). If the Contractor delivered application and system is not on the APL, the Contractor shall be responsible for taking the application and system through the FIPS 201 Evaluation Program.

The Contractor shall ensure all Contractor delivered applications and systems support:

1. Automated provisioning and are able to use enterprise provisioning service.
2. Interfacing with VA's Master Person Index (MPI) to provision identity attributes, if the solution relies on VA user identities. MPI is the authoritative source for VA user identity data.
3. The VA defined unique identity (Secure Identifier [SEC ID] / Integrated Control Number [ICN]).
4. Multiple authenticators for a given identity and authenticators at every Authenticator Assurance Level (AAL) appropriate for the solution.
5. Identity proofing for each Identity Assurance Level (IAL) appropriate for the solution.
6. Federation for each Federation Assurance Level (FAL) appropriate for the solution, if applicable.
7. Two-factor authentication (2FA) through an applicable Technology Guideline as outlined in VA ETG.
8. A Security Assertion Markup Language (SAML) implementation if the solution relies on assertion-based authentication. Additional assertion implementations, besides the required SAML assertion, may be provided as long as they are compliant with NIST SP 800-63-3 guidelines.
9. Authentication/account binding based on trusted Hypertext Transfer Protocol (HTTP) headers if the solution relies on Trust based authentication.
10. Role Based Access Control.
11. Auditing and reporting capabilities.
12. Compliance with VIEWS 00155984, PIV Logical Access Policy Clarification <https://www.voa.va.gov/DocumentView.aspx?DocumentID=4896>.

The required Assurance Levels for this specific effort are Identity Assurance Level 3, Authenticator Assurance Level 3, and Federation Assurance Level 3.

6.1.4 INTERNET PROTOCOL VERSION 6 (IPv6)

The Contractor solution shall support IPv6-Only based upon the memo issued by the Office of Management and Budget (OMB) on November 19, 2020 (<https://www.whitehouse.gov/wp-content/uploads/2020/11/M-21-07.pdf>). Which defines IPv6-only as the state of an operational system or service when IPv4 protocol functions (addressing, packet forwarding) are not in use. The NIST USGv6 profile defines

technical requirements for a product to be capable of operating in IPv6-Only environments. IPv6-Only technology, in accordance with the USGv6 Program (<https://www.nist.gov/programs-projects/usgv6-program/usgv6-revision-1>), NIST Special Publication (SP) 500-267B Revision 1 “USGv6 Profile” (<https://doi.org/10.6028/NIST.SP.500-267Br1>), and NIST SP 800-119 “Guidelines for the Secure Deployment of IPv6” (<https://doi.org/10.6028/NIST.SP.800-119>), compliance shall be included in all IT infrastructures, application designs, application development, operational systems and sub-systems, and their integration. In addition to the above requirements, all devices, applications, and systems shall support all applicable functionality on native IPv6-Only as well as dual stack (IPv6 / IPv4) connectivity without additional memory or other resources being provided by the Government, so that they can function in a mixed environment. All public/external facing servers and services (e.g., web, email, DNS, ISP services, etc.) shall support native IPv6-Only and dual stack (IPv6 / IPv4) users and all internal infrastructure and applications shall support using native IPv6-Only and dual stack (IPv6 / IPv4) for all functionality and operations.

6.1.5 TRUSTED INTERNET CONNECTION (TIC)

The Contractor solution shall meet the requirements outlined in Office of Management and Budget Memorandum M-19-26, “Update to the Trusted Internet Connections (TIC) Initiative” (<https://www.whitehouse.gov/wp-content/uploads/2019/09/M-19-26.pdf>), VA Directive 6513 “Secure External Connections”, and shall comply with the TIC 3.0 Core Guidance Documents, including all Volumes and TIC Use Cases, found at the Cybersecurity & Infrastructure Security Agency (CISA) (<https://www.cisa.gov/publication/tic-30-core-guidance-documents>).

6.1.6 STANDARD COMPUTER CONFIGURATION

The Contractor IT end user solution that is developed for use on standard VA computers shall be compatible with and be supported on the standard VA operating system, Windows 10 (64bit) and Windows 11, Edge (Chromium based), and 365 Apps for enterprise. Applications delivered to VA and intended to be deployed to Windows 10 and or Windows 11 workstations shall be delivered as a signed .msi package with switches for silent and unattended installation and updates shall be delivered in signed .msp file formats for easy deployment using Microsoft Endpoint Configuration Manager (CM) VA’s current desktop application deployment tool. Signing of the software code shall be through a vendor provided certificate that is trusted by VA using a code signing authority such as Verizon/Cybertrust or Symantec/VeriSign. The Contractor shall also ensure and certify that their solution functions as expected when used from a standard VA computer, with non-admin, standard user rights that have been configured using the Defense Information Systems Agency (DISA) Secure Technical Implementation Guide (STIG) specific to the particular client operating system being used.

6.1.7 VETERAN FOCUSED INTEGRATION PROCESS (VIP) AND PRODUCT LINE MANAGEMENT (PLM)

The Contractor shall support VA efforts IAW the Veteran-Focused Integration Process (VIP) Guide and Product Line Management (PLM) Playbook. The major focus of VIP is on Enterprise Oversight, Governance, reporting, and establishing practices that focus on outcomes and continuously delivering sustainable IT capabilities to benefit the

Veteran. PLM is a framework that focuses on delivering functional products that provide the highest priority work to customers while delivering simplified, reliable, and practical solutions to the business, medical staff, and our Veterans. The VIP Guide is a companion guide to the PLM Transformation Playbook and can be found at: <https://www.voa.va.gov/DocumentView.aspx?DocumentID=4371> and the PLM Transformation Playbook can be found at <https://www.voa.va.gov/DocumentView.aspx?DocumentID=4946>. VIP and PLM are the authoritative processes that IT projects must follow to ensure development and delivery of IT products.

The VIP Guide provides guidance for transitioning from project-centric to product-centric delivery. The VIP guide applies to all OIT Office of Management and Budget (OMB) reportable products that are required to collect and report costs, schedules, risks, and other valuable information in VA PARS (whether products are procured or developed by VA) and any VA Information Technology project effort in Software Product Management (SPM) and Infrastructure Operations (IO), or their successors, that touch the VA network regardless of IT organizational alignment (whether it spends government funding from VA's Congressional IT Appropriation or any other appropriation).

The PLM Transformation Playbook details how OIT leadership expects Product Lines (PLs) to implement PLM, DevOps, and Lean-Agile principles, methods, practices, and techniques through levels of maturity. The PLM Transformation Playbook applies to all Information Technology (IT) products aligned to PLs in the Software Product Management, Infrastructure Operations and Product Engineering organizations within the OIT organization.

Others outside the referenced groups or organizations may use the VIP Guide and PLM Transformation Playbook for situational awareness as needed.

6.1.8 PROCESS ASSET LIBRARY (PAL)

The Contractor shall perform their duties consistent with the processes defined in the OIT Process Asset Library (PAL). The PAL includes a spectrum of OIT functions and activities, such as project management, operations, service delivery, communications, acquisition, and resource management. PAL serves as an authoritative and informative repository of searchable processes, activities or tasks, roles, artifacts, tools and applicable standards and guides to assist the OIT workforce, Government and Contractor personnel. OIT utilizes PAL processes to ensure compliance with policies and regulations and to meet VA quality standards. The PAL includes the contractor onboarding process consistent with Section 6.2.2 and can be found at [process CONB_ext.docx \(live.com\)](https://www.va.gov/process). The main PAL can be accessed at www.va.gov/process.

6.1.9 AUTHORITATIVE DATA SOURCES

The VA Enterprise Architecture Repository (VEAR) is one component within the overall EA that establishes the common framework for data taxonomy for describing the data architecture used to develop, operate, and maintain enterprise applications. The Contractor shall comply with the department's Authoritative Data Source (ADS) requirement that VA systems, services, and processes throughout the enterprise shall

access VA data solely through official VA ADSs where applicable, see below. The Information Classes which compose each ADS are located in the VEAR, in the Data & Information domain. The Contractor shall ensure that all delivered applications and system solutions support:

1. Interfacing with VA's Master Person Index (MPI) (formerly the Master Veteran Index (MVI)) to provision identity attributes, if the solution relies on VA user identities. MPI is the authoritative source for VA user identity data.
2. Interfacing with Capital Asset Inventory (CAI) to conduct real property record management actions, if the solution relies on real property records data. CAI is the authoritative source for VA real property record management data.
3. Interfacing with electronic Contract Management System (eCMS) for access to contract, contract line item, purchase requisition, offering vendor, and solicitation information above the micro-purchase threshold, if the solution relies on procurement data. ECMS is the authoritative source for VA procurement actions data.
4. Interfacing with HRSmart Human Resources Information System to conduct personnel action processing, on-boarding, benefits management, and compensation management, if the solution relies on personnel data. HRSmart is the authoritative source for VA personnel information data.
5. Interfacing with VA Profile to access personal contact information, if the solution relies on VA Veteran personal contact information data. VA Profile is the authoritative source for VA Veteran Personal Contact Data.
6. Interfacing with VA/Department of Defense (DoD) Identity Repository (VADIR) for determining eligibility for VA benefits under Title 38, if the solution relies on qualifying active duty military service data. VADIR is the authoritative source for qualifying active duty military service in VA.
7. Interfacing with VA Systems Inventory (VASI) to access VA systems information, if the solution relies on VA system information. VASI is the authoritative source for VA Information Technology systems.
8. Interfacing with Enterprise Mission Assurance Support Service (eMASS) to access the Authority to Operate (ATO) status of all VA Information Systems. eMASS contains the official Authority to Operate (ATO) status of all VA Information Systems.

6.1.10 SOCIAL SECURITY NUMBER (SSN) REDUCTION

The Contractor solution shall support the Social Security Number (SSN) Fraud Prevention Act (FPA) of 2017 which prohibits the inclusion of SSNs on any document sent by mail. The Contractor support shall also be performed in accordance with Section 240 of the Consolidated Appropriations Act (CAA) 2018, enacted March 23, 2018, which mandates VA to discontinue using SSNs to identify individuals in all VA information systems as the Primary Identifier. The Contractor shall ensure that any new IT solution discontinues the use of SSN as the Primary Identifier to replace the SSN with the ICN in all VA information systems for all individuals. The Contractor shall ensure that all Contractor delivered applications and systems integrate with the VA MPI for identity traits to include the use of the ICN as the Primary Identifier. The Contractor solution may only use a Social Security Number to identify an individual in an information system if and only if the use of such number is required to obtain

information VA requires from an information system that is not under the jurisdiction of VA.

6.1.11 SOURCE CODE HARMONIZATION AND REUSE IN INFORMATION TECHNOLOGY (SHARE IT) ACT

The Contractor shall comply with the Source Code Harmonization and Reuse in Information Technology (SHARE IT) Act, P.L. 118-187, when developing and delivering custom code first produced for the VA in the performance of this Contract/Order. The Contractor shall deliver to the Government all data first produced under this Contract/Order with unlimited rights as defined by FAR 52.227-14, to include without limitation, all custom-developed code and other key technical components of the code (including documentation, data models, schemas, metadata, architecture designs, configuration scripts, and artifacts required to develop, build, test, and deploy the code). Custom-developed code includes source code, or segregable portions of source code and all documentation created in support thereof to include source code written for a software project, product, module, plugin, script, middleware, or application programming interface. The Custom-developed Code Package required under this section shall be delivered as required in accordance with the initial (Day One) Task Order.

Deliverable:

- A. Custom-developed Code Package

6.2 SECURITY AND PRIVACY REQUIREMENTS

It has been determined that protected health information may be disclosed or accessed and a signed Business Associate Agreement (BAA) shall be required. The Contractor shall adhere to the requirements set forth within the BAA, referenced in Section D of the contract, and shall comply with VA Directive 6066.

6.2.1 POSITION/TASK RISK DESIGNATION LEVEL(S)

In accordance with VA Handbook 0710, Personnel Security and Suitability Program, the position sensitivity and the level of background investigation commensurate with the required level of access for the following tasks within the PWS are:

Position Sensitivity and Background Investigation Requirements by Task

Task Number	Tier1 / Low Risk	Tier 2 / Moderate Risk	Tier 4 / High Risk
5.1	☒	☐	☐
5.2	☒	☐	☐
5.3	☒	☐	☐

The Tasks identified above and the resulting Position Sensitivity and Background Investigation requirements identify, in effect, the Background Investigation requirements for Contractor individuals, based upon the tasks the particular Contractor individual will be working. The submitted Contractor Staff Roster must indicate the required

Background Investigation Level for each Contractor individual based upon the tasks the Contractor individual will be working, in accordance with their submitted proposal.

6.2.2 CONTRACTOR PERSONNEL SECURITY REQUIREMENTS

Contractor Responsibilities:

- a. The Contractor shall prescreen all personnel requiring access to the computer systems to ensure they maintain the appropriate Background Investigation, and are able to read, write, speak, and understand the English language. Within 3 business days after award, the Contractor shall provide a roster of Contractor and Subcontractor employees to the COR to begin their background investigations in accordance with the PAL template artifact. The Contractor Staff Roster shall contain the Contractor's Full Name, Date of Birth, Place of Birth, individual background investigation level requirement (based upon Section 6.2 Tasks), etc. The Contractor shall submit full Social Security Numbers either within the Contractor Staff Roster or under separate cover to the COR. The Contractor Staff Roster shall be updated and provided to VA within 1 day of any changes in employee status, training certification completion status, Background Investigation level status, additions/removal of employees, etc. throughout the Period of Performance. The Contractor Staff Roster shall remain a historical document indicating all past information and the Contractor shall indicate in the Comment field, employees no longer supporting this contract. The preferred method to send the Contractor Staff Roster or Social Security Number is by encrypted e-mail. If unable to send encrypted e-mail, other methods which comply with FIPS 140-2 (or its successor) are to encrypt the file, use a secure fax, or use a traceable mail service. (Note that by September 22, 2026, all FIPS 140-2 certificate validations will be placed on the Historical List. See FIPS Transition Effort Timeline for more details: <https://csrc.nist.gov/projects/fips-140-3-transition-effort#schedule>)
- b. The Contractor should coordinate with the location of the nearest VA fingerprinting office through the COR. Only electronic fingerprints are authorized. The Contractor shall bring their completed Security and Investigations Center (SIC) Fingerprint request form with them (see paragraph d.4. below) when getting fingerprints taken.
- c. The Contractor shall ensure the following required forms are submitted to the COR within 5 days after contract award:
 - 1) Optional Form 306
 - 2) Self-Certification of Continuous Service
 - 3) VA Form 0710
 - 4) Completed SIC Fingerprint Request Form

The Contractor personnel shall submit all required information related to their background investigations (completion of the investigation documents (SF85, SF85P, or SF 86) utilizing the Office of Personnel Management's (OPM) Electronic Questionnaire for Investigations Processing (e-QIP) after receiving an email notification from the SIC.

The Contractor employee shall certify and release the e-QIP document, print, and sign the signature pages, and send them encrypted to the COR for

electronic submission to the SIC. These documents shall be submitted to the COR within 3 business days of receipt of the e-QIP notification email. (Note: OPM is moving towards a “click to sign” process. If click to sign is used, the Contractor employee should notify the COR within 3 business days that documents were signed via e-QIP).

- d. The Contractor shall be responsible for the actions of all personnel provided to work for VA under this contract. In the event that damages arise from work performed by Contractor provided personnel, under the auspices of this contract, the Contractor shall be responsible for all resources necessary to remedy the incident.
- e. A Contractor may be granted unescorted access to VA facilities and/or access to VA Information Technology resources (network and/or protected data) with a favorably adjudicated Special Agreement Check (SAC), completed training delineated in VA Handbook 6500.6 (Appendix C, Section 4), signed “Contractor Rules of Behavior”, and with a valid, operational Personal Identity Verification (PIV) credential for PIV-only logical access to VA’s network. A PIV card credential can be issued once your SAC has been favorably adjudicated and your background investigation has been scheduled by OPM. However, the Contractor will be responsible for the actions of the Contractor personnel they provide to perform work for VA. The investigative history for Contractor personnel working under this contract must be maintained in the database of OPM.
- f. The Contractor, when notified of an unfavorably adjudicated background investigation on a Contractor employee as determined by the Government, shall withdraw the employee from consideration in working under the contract.

Failure to comply with the Contractor personnel security investigative requirements may result in loss of physical and/or logical access to VA facilities and systems by Contractor and Subcontractor employees and/or termination of the contract for default.

PIV Credential Holders must follow all HSPD-12 policies and procedures as well as use and protect their assigned identity credentials in accordance with VA policies and procedures, displaying their badges at all times, and returning the identity credentials upon termination of their relationship with VA.

Deliverable:

- A. Contractor Staff Roster

6.2.3 PHYSICAL SECURITY AND SAFETY REQUIREMENTS

The Contractor and their personnel shall follow all VA policies, standard operating procedures, applicable laws and regulations while on VA property. Violations of VA regulations and policies may result in citation and disciplinary measures for people violating the law.

- a. The Contractor and their personnel shall wear visible identification at all times while they are on the premises.
- b. VA does not provide parking spaces at the work site; the Contractor must obtain parking at the work site if needed. It is the responsibility of the Contractor to park in

the appropriate designated parking areas. VA will not invalidate or make reimbursement for parking violations of the Contractor under any conditions.

- c. Smoking is prohibited inside/outside any building other than the designated smoking areas.
- d. Possession of weapons is prohibited.

The Contractor shall obtain all necessary licenses and/or permits required to perform the work, with the exception of software licenses that need to be procured from a Contractor or Contractor in accordance with the requirements document. The Contractor shall take all reasonable precautions necessary to protect persons and property from injury or damage during the performance of this contract.

6.3 METHOD AND DISTRIBUTION OF DELIVERABLES

The Contractor shall deliver documentation in electronic format, unless otherwise directed in Section B of the solicitation/contract. Acceptable electronic media include: Microsoft 365 suite, MS Word, MS Excel, MS PowerPoint, MS Project, MS Access, MS Visio, AutoCAD, and Adobe Postscript Data Format (PDF).

6.4 PERFORMANCE METRICS

The table below defines the Performance Standards and Acceptable Levels of Performance associated with this effort.

Performance Objective	Performance Standard	Acceptable Levels of Performance
A. Technical / Quality of Product or Service	1. Demonstrates understanding of requirements 2. Efficient and effective in meeting requirements 3. Meets technical needs and mission requirements 4. Provides quality services/products 5. Incorporates "ease of use" Human Centered Design principles in any software developed. 6. KPI for Support	Satisfactory or higher

B. Project Milestones and Schedule	1. Established milestones and project dates are met 2. Products completed, reviewed, delivered in accordance with the established schedule 3. Notifies customer in advance of potential problems	Satisfactory or higher
C. Cost & Staffing	1. Currency of expertise and staffing levels appropriate to perform tasks required 2. Personnel possess necessary knowledge, skills, and abilities to perform tasks	Satisfactory or higher
D. Management	1. Integration and coordination of all activities to execute effort	Satisfactory or higher

The COR will utilize a Quality Assurance Surveillance Plan (QASP) throughout the life of the contract to ensure that the Contractor is performing the services required by this PWS in an acceptable level of performance. The Government reserves the right to alter or change the surveillance methods in the QASP at its own discretion.

6.5 FACILITY/RESOURCE PROVISIONS

The Government will provide office space, telephone service and system access when authorized contract staff work at a Government location as required in order to accomplish the Tasks associated with this PWS. All procedural guides, reference materials, and program documentation for the project and other Government applications will also be provided on an as-needed basis.

The Contractor shall request other Government documentation deemed pertinent to the work accomplishment directly from the Government officials with whom the Contractor has contact. The Contractor shall consider the COR as the final source for needed Government documentation when the Contractor fails to secure the documents by other means. The Contractor is expected to use common knowledge and resourcefulness in securing all other reference materials, standard industry publications, and related materials that are pertinent to the work.

VA may provide remote access to VA specific systems/network in accordance with VA Handbook 6500, which requires the use of a VA approved method to connect external equipment/systems to VA's network. Citrix Access Gateway (CAG) and now the Azure Virtual Desktop (AVD) (as VA is currently transitioning from CAG to the AVD), are the current and only VA approved methods for remote access users when using or manipulating VA information for official VA Business. VA permits CAG remote access through approved Personally Owned Equipment (POE) and Other Equipment (OE) provided the equipment meets all applicable 6500 Handbook requirements for POE/OE. All of the security controls required for Government furnished equipment (GFE) must be

utilized in approved POE or OE. The Contractor shall provide proof to the COR for review and approval that their POE or OE meets the VA Handbook 6500 requirements and VA Handbook 6500.6 Appendix C, herein incorporated as Addendum B, before use. CAG authorized users shall not be permitted to copy, print, or save any VA information accessed via CAG at any time. VA prohibits remote access to VA's network from non-North Atlantic Treaty Organization (NATO) countries. The exception to this are countries where VA has approved operations established (e.g. Philippines and South Korea). Exceptions are determined by the COR in coordination with the Information System Security Officer (ISSO) and Privacy Officer (PO).

This remote access may provide access to VA specific software such as Veterans Health Information System and Technology Architecture (VistA), ClearQuest, PAL, Primavera, and Remedy, including appropriate seat management and user licenses, depending upon the level of access granted. The Contractor shall utilize government-provided software development and test accounts, documents, and requirements repositories, etc. as required for the development, storage, maintenance, and delivery of products within the scope of this effort. All VA sensitive information shall be protected at all times in accordance with VA Handbook 6500, local security field office System Security Plans (SSP's) and Authority to Operate (ATO)'s for all systems/LAN's accessed while performing the tasks detailed in this PWS. The Contractor shall ensure all work is performed in countries deemed not to pose a significant security risk. For detailed Security and Privacy Requirements (additional requirements of the contract consolidated into an addendum for easy reference) refer to ADDENDUM A – ADDITIONAL VA REQUIREMENTS, CONSOLIDATED and ADDENDUM B - VA INFORMATION AND INFORMATION SYSTEM SECURITY/PRIVACY LANGUAGE.

6.6 TRUSTWORTHY ARTIFICIAL INTELLIGENCE

For purposes of this clause, AI is defined as set forth by the VA and Section 238(g) of the National Defense Authorization Act for Fiscal Year 2019 to include:

1. Any artificial system that performs tasks under varying and unpredictable circumstances without significant human oversight, or that can learn from experience and improve performance when exposed to data sets.
2. An artificial system developed in computer software, physical hardware, or other context that solves tasks requiring human-like perception, cognition, planning, learning, communication, or physical action.
3. An artificial system designed to think or act like a human, including cognitive architectures and neural networks.
4. A set of techniques, including machine learning (ML), that is designed to approximate a cognitive task.
5. An artificial system designed to act rationally, including an intelligent software agent or embodied robot that achieves goals using perception, planning, reasoning, learning, communicating, decision making, and acting.

The Contract shall provide a list of all AI it will be using as part of contract performance for VA approval and inclusion in the subject contract. This includes, but shall not be limited to, the AI which will be provided as part of its solution for the VA's AI requirement as outlined in the corresponding PWS (if applicable), as well as any other

recommended and/or intended AI for use during contract performance. The list of recommended AI shall be provided directly to the COR at least annually but also at the following times: upon proposal submission, contract award, and the COR's request. AI shall not be used in performance of the contract without the written approval and authorization of the CO. The Contractor shall also report all AI intended for use in contract performance to VA's Digital Health Office DHO. The Contractor shall actively engage in AI discovery, assessment, and compliance activities undertaken by VA. The Contractor shall report all appropriate use cases to VA CAIO through any required inventory processes.

Once the Contractor has obtained CO authorization to use specific AI in contract performance, the Contractor shall provide the COR a signed Statement of Attestation prior to AI implementation as part of the Contractor's proposal submission. The Statement of Attestation shall include, but is not limited to, a description of all controls, processes, technologies, and mechanisms utilized to meet the applicable requirements for the use of AI as set forth in section 6.7. The Statement of Attestation shall also certify that the Contractor owns or possesses all legally required rights, copyright, and licenses to use the specified AI. The Statement of Attestation shall clearly state that the use of the AI by VA personnel in performance of the contract:

1. Does not and will not infringe upon any intellectual property rights of any kind.
2. Does not violate any intellectual property rights of any kind.
3. Does not violate any other third-party rights of any kind.

The Statement of Attestation shall also affirm that there have not been any persisting or existing material errors, defects, failures, or interruptions in AI performance of its intended purpose. Additionally, the Statement of Attestation shall include the Contractor's endorsement that the AI has materially performed in accordance with its specifications and intended purpose. Lastly, the Statement of Attestation shall be updated and resubmitted annually. The Statement of Attestation shall be deemed separate from, and in addition to, the Contractor's reporting requirements relative to the use of AI. The Statement of Attestation is a material term of the contract; accordingly, failure to provide the Statement of Attestation to include all requirements, may be deemed a breach of contract and thus, cause for termination.

The Contractor (or Subcontractor at any tier, including affiliates) shall not sell, monetize, or otherwise release or misuse any VA data to include any models, training data, testing data, patterns, documentation, implementation artifacts, runtime artifacts, or any other digital artifacts, partially or as a whole, derived from AI or machine learning (ML) without the express written consent and approval from the CO.

VA data shall remain the sole and exclusive property of the Agency. The Contractor is provided limited access to use VA data solely for performing its obligations under the Contract. The contractor shall: (a) keep and maintain VA data in strict confidence and as further described in this Contract and applicable law to avoid unauthorized access, use, disclosure, or loss; (b) not use, sell, rent, transfer, distribute, or otherwise disclose or make available VA data for Contractor's own purposes or for the benefit of anyone other than Agency without Agency's prior written consent; and (c) not store, use, and transmit Agency data outside of the United States.

The Contractor is prohibited from using non-public VA data and outputted results to further train publicly or commercially available AI algorithms, consistent with applicable law, except with the express written authorization from the Agency specifying the Agency data that may be used along with the acceptable scope of such usage.

The Contractor may allow VA to fine-tune or conduct other forms of model customization ("Fine-Tuning Services" and any such resulting model, a "Fine-Tuned Model"), including using data provided by VA ("Fine-Tuning Materials"). Fine-Tuning Services use the Fine-Tuning Materials for the purpose of generating or validating Fine-Tuned Models. Fine-Tuning Materials are VA Data. VA's use of the Fine-Tuning Services does not constitute a violation of the prohibition on training in the Agreement; provided that the training conducted is solely for VA's use of the Fine-Tuning Services.

The Contractor shall indemnify VA and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of VA use of any AI products and/or services under the contract.

The Contractor shall maintain commercially reasonable insurance coverage for claims or losses pertaining to the AI products or services being used in performance of the contract.

The Contractor shall maintain commercially reasonable and industry standard conforming security safeguards and controls, including proper access controls for the AI. The Contractor agrees the VA Contracting Officer has the unilateral right to require deactivation of any AI for any reason without notice.

Any development and/or creation of AI, to include AI derivatives and/or data as a result of the performance of this contract is subject to all applicable Intellectual Property and data rights clauses under the Federal Acquisition Regulation (FAR), including FAR 52.227-14. The Contractor retains ownership of all AI technologies and methodologies developed without the use of VA resources and data assets.

The Contractor, in collaboration with VA, must evaluate the output of any AI tool for accuracy prior to using the output in VA efforts. The Contractor shall deliver the services, technical data, configurations, models, weights, documentation or other information, including source code, developed during contract performance. All data, including models, weights, algorithms, and outputs generated using either Government-furnished data or data first developed under this contract shall be the property of the Government. Additionally, the Contractor shall also deliver any data to include models, model weights and custom-developed code with AI methodologies in accordance with the SHARE IT Act (see Section 6.1.11) The Government will receive Unlimited Rights in intellectual property first produced and delivered in the performance of this contract in accordance with FAR 52.227-14, Rights In Data-General (DEC 2007). This includes all rights to source code, models, weights, and any and all documentation created during performance of this task order in support thereof. VA shall also retain unlimited rights to any improvements to that data, including the continued design, development, testing,

and operation of AI systems and/or systems utilizing AI. License rights in any Commercial Computer Software shall be governed by this contract.

This clause applies to both existing and new uses of AI, both stand-alone AI and AI embedded within other systems or applications, AI developed both by the Agency or by third parties on behalf of Agencies for the fulfillment of specific agency missions, including relevant data inputs used to train AI and outputs used in support of decision making, and VA procurement of AI applications.

This clause does not apply to AI embedded within common commercial products, such as word processors or map navigation systems. The Contractor shall inform the VA Contracting Officer in writing if it believes the recommended and/or intended AI for use during contract performance is not covered by this clause. The burden to demonstrate the AI is a common commercial product shall rest solely with the Contractor.

Non-compliance with the terms above, or an accidental or purposeful loss of sensitive VA medical records information resulting from AI use, may result in Contractor liability to VA for any and all rights and remedies provided by law, including but not limited to contract termination, liquidated damages, and referral to VA's Suspension and Debarment Committee. The entire definition of VA Sensitive Data can be found at 38 U.S.C. § 5727 (23). The Contractor shall protect VA Sensitive data from unauthorized disclosure or use, and from being used to train or improve the functionality of the vendor's commercial offerings without express written permission from VA.

The Contractor shall include the substance of this clause in all subcontracts, including subcontractors at any tier and affiliates.

6.7 GENERATIVE ARTIFICIAL INTELLIGENCE REQUIREMENTS

If Artificial Intelligence is part of the Contractor system/solution, the Contractor shall be in compliance with E.O. 13960 and 14319, OMB Memorandums M-25-21, M-25-22, and M-26-04, and VA Directive and Handbook 6500 to support VA in trustworthy, secure, unbiased, and accountable AI innovation and ensure alignment with federal policies. Additionally, the Contractor shall support VA ensuring responsible AI, responsible use of AI, AI generated custom-developed code sharing and reusability (e.g. compliance with the SHARE IT Act), and AI Risk Management.

No web-based, publicly available generative AI service has been approved for use with VA-sensitive data, i.e. OpenAI's ChatGPT, Microsoft's Copilot, Google's Gemini, and Anthropic's Claude, among others. No PII, protected health information (PHI), or VA-sensitive data should be entered into these unapproved services. The entire definition of VA Sensitive Data can be found at 38 U.S.C. § 5727 (23).

The Contractor shall ensure that all AI Systems, including Large Language Models (LLM), whether standalone LLMs or integrated into broader software platforms, procured under this effort and/or used in performance of this contract complies with the Unbiased AI Principles as defined in Executive Order 14319 and OMB Memorandum M-26-04, e.g. Truth Seeking and Ideologically Neutral, as applicable to the intended use of the system.

The Contractor shall ensure that AI System/LLM generated outputs are truthful in responding to user prompts seeking factual information or analysis, prioritize historical accuracy, scientific inquiry, and objectivity, as well as acknowledge uncertainty where reliable information is incomplete or contradictory and do not fabricate, hallucinate, or present unverifiable information as fact.

The Contractor shall ensure that LLMs and AI outputs are neutral, nonpartisan tools that do not manipulate responses in favor of ideological dogmas such as DEI. The Contractor shall ensure that the LLMs, including the AI System, are not intentionally encoded with partisan or ideological judgments within an AI System's/LLM's outputs unless those judgments are prompted by or otherwise readily accessible to the end user.

Compliance with the AI requirements of this contract, including adherence to the Unbiased AI Principles, Truth-Seeking and Ideological Neutrality requirements, disclosure obligations, monitoring and reporting requirements, and corrective action responsibilities, is a material condition of eligibility for payment and continued performance. In accordance with OMB Memorandum M-26-04, failure to comply with these requirements, or refusal to take timely and appropriate corrective action to remedy identified noncompliance, may constitute a material breach of contract and may result in remedies consistent with the terms of the contract and applicable law including but not limited to withholding of payment, termination for cause/default, off-ramping, or other appropriate contractual remedies, as determined by the Contracting Officer.

6.7.1 AI SYSTEM/LLM DEVELOPMENT AND OPERATION DOCUMENTATION REQUIREMENTS

To enable Government continued assessment of compliance with Trustworthy AI requirements and both Unbiased AI Principles, Truth-seeking and Ideological Neutrality, in accordance with OMB M-26-04, the Contractor shall provide AI System/LLM Development and Operation documentation to include, at a minimum:

1. Acceptable Use Policy

The Contractor shall provide an Acceptable Use Policy document governing its AI operation that characterizes and differentiates appropriate and inappropriate use of their product offering

2. Model Cards, System Cards and/or Data Cards

The Contractor shall provide documentation describing essential information about the model, system, and or data as it relates to the AI/LLM product offering. The documentation shall address summaries of training process, identified risks and mitigations, and model evaluation scores on LLM benchmarks at a minimum, where appropriate

3. End User Resources

The Contractor shall provide documentation to include product tutorials, developer guides, and/or other tools to assist VA in ensuring proper use of the AI/LLM to maximize utility

4. Mechanism for End User Feedback

The Contractor shall provide documentation describing the mechanism employed to provide feedback to the Offeror on outputs identified that violate the Unbiased AI Principles. This may be satisfied by a general inbox, specific Point of Contact, or similar feedback mechanism.

5. Pre-Training and Post-Training Activities of the AI System/LLM

The Contractor shall provide documentation of Pre-Training and Post Training Activity that provides details on:

- a. Actions taken that impact the factuality and grounding of AI System/LLM outputs
- b. System-level prompts that provide natural language instructions to the model specifying guidelines on responding to user-generated queries, to include how a model responds when reliable information is incomplete, contradictory, or subject to individual interpretation
- c. The type of outputs restricted via content moderation and safety filters
- d. The use of red teaming as a means of continuously assessing the model to protect against incidents of bias in generated output.
- e. Training or development, if any, that occurred outside the United States, to include the type of activity and the country in which it occurred.
- f. Any modifications or configurations undertaken to comply with any regulation from a government other than the U.S. Federal Government.

6. Model Evaluation Results and Methodologies

The Contractor shall provide documentation describing the Evaluation Results of bias evaluations conducted by the Vendor to include the methodology for performing such tests (e.g., testing prompt pairs for politically-oriented topics).

The documentation shall also include Benchmark scoring results measuring the model's bias, helpfulness, honesty, or accuracy when provided with ambiguous versus straightforward questions, including any benchmarks comparing performance across multiple languages, where applicable.

7. Description of Enterprise-Level Controls

The Contractor shall provide documentation describing the Enterprise Governance tools and controls, such as:

- a. Customizable system instructions that are additive to a base model's system prompts or content generation filters.

- b. Product features that require a model to cite sources of its outputs or otherwise provide visibility into the provenance of the model's outputs.
- c. AI System/LLM model evaluation tools that enable comparisons either between a model's outputs, or across various models.

8. Third Party Modification Disclosure

The Contractor shall disclose of any additional controls to modify an AI Model's/LLM's output applied by the Contractor if the Contractor is not a direct developer of the LLM (e.g., classifiers, system prompts, fine-tuning, content moderation and filters)

Deliverable:

- A. AI System/LLM Development and Operation Documentation Package

6.7.2 MONITORING, REPORTING, AND CORRECTIVE ACTION

The Contractor shall develop and implement a Compliance Monitoring and Reporting Plan supporting ongoing monitoring processes to evaluate AI outputs for compliance with Trustworthy AI and Unbiased AI principles. This plan shall include a mechanism for authorized users to provide end user feedback to report suspected violations of Truth-Seeking or Ideological Neutrality requirements.

The Contractor shall notify the COR within ten (10) business days of identifying any material deviation from these principles and shall submit a written Corrective Action Plan describing mitigation steps, responsible parties, and timelines. Any material deviation, corrective action, and results shall be detailed in the Monthly Report in accordance with Section 5.3.3.1 of this PWS.

Deliverables:

- A. Compliance Monitoring and Reporting Plan
- B. Corrective Action Plan

6.7.3 MODEL UPDATES AND CHANGE NOTIFICATION

The Contractor, in an AI Model/LLM Change Disclosure, shall notify the Government throughout the PoP in advance of any material changes to AI models, including new AI enhancements, features and/or components, controls, retraining, classifiers, system prompts, fine-tuning, content moderation, filters, version replacement, or architectural changes, that could reasonably affect compliance with Trustworthy AI or Unbiased AI principles. Updated documentation shall be provided to VA prior to implementation of such changes.

Deliverable:

- A. AI Model/LLM Change Disclosure

ADDENDUM A – ADDITIONAL VA REQUIREMENTS, CONSOLIDATED

A1.0 Cyber and Information Security Requirements for VA IT Services

The Contractor shall ensure adequate LAN/Internet, data, information, and system security in accordance with VA standard operating procedures and standard PWS language, conditions, laws, and regulations. The Contractor's firewall and web server shall meet or exceed VA minimum requirements for security. All VA data shall be protected behind an approved firewall. Any security violations or attempted violations shall be reported to the VA Program Manager and VA Information Security Officer as soon as possible. The Contractor shall follow all applicable VA policies and procedures governing information security, especially those that pertain to assessment and authorization and continuous monitoring.

Contractor supplied equipment, PCs of all types, equipment with hard drives, etc. for contract services must meet all security requirements that apply to Government Furnished Equipment (GFE) and Government Owned Equipment (GOE). Security Requirements include: a) VA Approved Encryption Software must be installed on all laptops or mobile devices before being placed into operation, b) Bluetooth equipped devices are prohibited within VA; Bluetooth must be permanently disabled or removed from the device, unless the connection uses FIPS 140-2 (or its successor) validated encryption, c) VA approved anti-virus and firewall software, d) Equipment must meet all VA sanitization requirements and procedures before disposal. The Contractor shall notify the COR/CO within one hour of disclosure or successful exploits of any vulnerability which can compromise the confidentiality, integrity, or availability of the information systems.

Each documented initiative under this contract incorporates VA Handbook 6500.6, "Contract Security," March 12, 2010 (Appendix C updated April 22, 2024) by reference as though fully set forth therein. The VA Handbook 6500.6, "Contract Security" shall also be included in every related agreement, contract, or order. The VA Handbook 6500.6, Appendix C, is included in this document as Addendum B.

Training requirements: The Contractor shall complete all mandatory training courses on the current VA training site, the VA Talent Management System (TMS) 2.0, and will be tracked therein. The TMS 2.0 may be accessed at <https://www.tms.va.gov/SecureAuth35/>. If you do not have a TMS 2.0 profile, go to <https://www.tms.va.gov/SecureAuth35/> and click on the "Create New User" link on the TMS 2.0 to gain access.

Contractor employees shall complete a VA Systems Access Agreement if they are provided access privileges as an authorized user of the computer system of VA.

A2.0 VA Enterprise Architecture Compliance

The applications, supplies, and services furnished under this contract must comply with VA Enterprise Architecture (EA), available at <http://www.ea.oit.va.gov/index.asp> in force at the time of issuance of this contract, including the Program Management Plan and VA's rules, standards, and guidelines in the Technical Reference Model/Standards Profile (TRMSP). VA reserves the right to assess contract deliverables for EA compliance prior to acceptance.

A2.1. VA Internet and Intranet Standards

The Contractor shall adhere to and comply with VA Directive 6102 and VA's Web Governance if the Contractor's work includes building and maintaining VA's digital presence. This pertains, but is not limited to: websites, social media, creating announcements; collecting information; databases to be accessed, graphics and links to external sites.

Internet/Intranet Services Directive 6102 is posted at (copy and paste the following URL to browser): https://www.va.gov/vapubs/viewPublication.asp?Pub_ID=1056&FType=2

VA Web Governance website can be found at [Home - VA Web Governance](#).

A3.0 Notice of the Federal Accessibility Law Affecting All Information and Communication Technology (ICT) Procurements (Section 508)

On January 18, 2017, the Access Board issued a final rule that updated accessibility requirements covered by Section 508 and refreshed guidelines for telecommunications equipment subject to Section 255 of the Communications Act. The final rule went into effect on January 18, 2018. The revisions and updates to the Section 508-based standards and Section 255-based guidelines are intended to ensure that information and communication technology (ICT) covered by the respective statutes is accessible to and usable by individuals with disabilities.

A3.1. Section 508 – Information and Communication Technology (ICT) Standards

The Section 508 standards established by the Access Board are incorporated into, and made part of all VA orders, solicitations and purchase orders developed to procure ICT. These standards are found in their entirety at: [Revised 508 Standards and 255 Guidelines \(access-board.gov\)](#). A single PDF file version of the Revised Section 508 Standards and 255 Guidelines will be supplied upon request, or can be obtained from the Access Board website. Federal agencies must comply with the Rehabilitation Act of 1973, as amended.

The Contractor shall comply with "508 Chapter 2: Scoping Requirements" for all electronic ICT and content delivered under this contract. Specifically, as appropriate for the technology and its functionality, the Contractor shall comply with the technical standards marked here:

- ☒ E205 Electronic Content – (Accessibility Standard -WCAG 2.0 Level A and AA Guidelines)
- ☒ E204 Functional Performance Criteria
- ☐ E206 Hardware Requirements
- ☒ E207 Software Requirements
- ☒ E208 Support Documentation and Services Requirements

A3.2. Compatibility with Assistive Technology

The standards do not require installation of specific accessibility-related software or attachment of an assistive technology device. Section 508 requires that ICT be compatible with such software and devices so that ICT can be accessible to and usable by individuals using assistive technology, including but not limited to screen readers, screen magnifiers, and speech recognition software.

A3.3. Acceptance and Acceptance Testing

Deliverables resulting from this solicitation will be accepted based in part on satisfaction of the Section 508 Chapter 2: Scoping Requirements standards identified above.

The Government reserves the right to test for Section 508 Compliance before delivery. The Contractor shall be able to demonstrate Section 508 Compliance upon delivery.

A4.0 Physical Security & Safety Requirements:

The Contractor and their personnel shall follow all VA policies, standard operating procedures, applicable laws and regulations while on VA property. Violations of VA regulations and policies may result in citation and disciplinary measures for persons violating the law.

1. The Contractor and their personnel shall wear visible identification at all times while they are on the premises.
2. VA does not provide parking spaces at the work site; the Contractor must obtain parking at the work site if needed. It is the responsibility of the Contractor to park in the appropriate designated parking areas. VA will not invalidate or make reimbursement for parking violations of the Contractor under any conditions.
3. Smoking is prohibited inside/outside any building other than the designated smoking areas.
4. Possession of weapons is prohibited.
5. The Contractor shall obtain all necessary licenses and/or permits required to perform the work, with the exception of software licenses that need to be procured from a Contractor or vendor in accordance with the requirements document. The Contractor shall take all reasonable precautions necessary to protect persons and property from injury or damage during the performance of this contract.

A5.0 Confidentiality and Non-Disclosure

The Contractor shall follow all VA rules and regulations regarding information security to prevent disclosure of sensitive information to unauthorized individuals or organizations.

The Contractor may have access to Protected Health Information (PHI) and Electronic Protected Health Information (ePHI) that is subject to protection under the regulations issued by the Department of Health and Human Services, as mandated by the Health Insurance Portability and Accountability Act of 1996 (HIPAA); 45 CFR Parts 160 and

164, Subparts A and E, the Standards for Privacy of Individually Identifiable Health Information ("Privacy Rule"); and 45 CFR Parts 160 and 164, Subparts A and C, the Security Standard ("Security Rule"). Pursuant to the Privacy and Security Rules, the Contractor must agree in writing to certain mandatory provisions regarding the use and disclosure of PHI and ePHI.

1. The Contractor will have access to some privileged and confidential materials of VA. These printed and electronic documents are for internal use only, are not to be copied or released without permission, and remain the sole property of VA. Some of these materials are protected by the Privacy Act of 1974 (revised by PL 93-5791) and Title 38. Unauthorized disclosure of Privacy Act or Title 38 covered materials is a criminal offense.
2. The VA CO will be the sole authorized official to release in writing, any data, draft deliverables, final deliverables, or any other written or printed materials pertaining to this contract. The Contractor shall release no information. Any request for information relating to this contract presented to the Contractor shall be submitted to the VA CO for response.
3. Contractor personnel recognize that in the performance of this effort, Contractor personnel may receive or have access to sensitive information, including information provided on a proprietary basis by carriers, equipment manufacturers and other private or public entities. Contractor personnel agree to safeguard such information and use the information exclusively in the performance of this contract. Contractor shall follow all VA rules and regulations regarding information security to prevent disclosure of sensitive information to unauthorized individuals or organizations as enumerated in this section and elsewhere in this Contract and its subparts and appendices.
4. Contractor shall limit access to the minimum number of personnel necessary for contract performance for all information considered sensitive or proprietary in nature. If the Contractor is uncertain of the sensitivity of any information obtained during the performance this contract, the Contractor has a responsibility to ask the VA CO.
5. Contractor shall train all of their employees involved in the performance of this contract on their roles and responsibilities for proper handling and nondisclosure of sensitive VA or proprietary information. Contractor personnel shall not engage in any other action, venture or employment wherein sensitive information shall be used for the profit of any party other than those furnishing the information. The sensitive information transferred, generated, transmitted, or stored herein is for VA benefit and ownership alone.
6. Contractor shall maintain physical security at all facilities housing the activities performed under this contract, including any Contractor facilities according to VA-approved guidelines and directives. The Contractor shall ensure that security procedures are defined and enforced to ensure all personnel who are provided access to patient data must comply with published procedures to protect the privacy and confidentiality of such information as required by VA.
7. Contractor must adhere to the following:
 - a. The use of "thumb drives" or any other medium for transport of information is expressly prohibited.

- b. Controlled access to system and security software and documentation.
 - c. Recording, monitoring, and control of passwords and privileges.
 - d. All terminated personnel are denied physical and electronic access to all data, program listings, data processing equipment and systems.
 - e. VA, as well as any Contractor (or Subcontractor) systems used to support development, provide the capability to cancel immediately all access privileges and authorizations upon employee termination.
 - f. Contractor PM and VA PM are informed within twenty-four (24) hours of any employee termination.
 - g. Acquisition sensitive information shall be marked "Acquisition Sensitive" and shall be handled as "For Official Use Only (FOUO)".
 - h. Contractor does not require access to classified data.
8. Regulatory standard of conduct governs all personnel directly and indirectly involved in procurements. All personnel engaged in procurement and related activities shall conduct business in a manner above reproach and, except as authorized by statute or regulation, with complete impartiality and with preferential treatment for none. The general rule is to strictly avoid any conflict of interest or even the appearance of a conflict of interest in VA/Contractor relationships.
9. VA Form 0752 shall be completed by all Contractor employees working on this contract and shall be provided to the CO before any work is performed. In the case that Contractor personnel are replaced in the future, their replacements shall complete VA Form 0752 prior to beginning work.

A6.0 Information Technology Using Sustainable Products and Services

Not Applicable.

**ADDENDUM B – VA INFORMATION AND INFORMATION SYSTEM SECURITY/
PRIVACY LANGUAGE**

NOTE: In the event of a conflict, VAAR Security Clauses take precedence over the language in this Addendum B.

APPLICABLE SECTIONS FROM: *VA NOTICE 24-12, APRIL 22, 2024, UPDATE TO VA HANDBOOK 6500.6, CONTRACT SECURITY, APPENDIX C VA INFORMATION AND INFORMATION SYSTEM SECURITY/PRIVACY LANGUAGE, FOR INCLUSION INTO CONTRACTS, AS APPROPRIATE*

B1. GENERAL

This entire section applies to all acquisitions requiring any Information Security and Privacy language. Contractors, contractor personnel, Subcontractors and subcontractor personnel will be subject to the same federal laws, regulations, standards, VA directives and handbooks, as VA personnel regarding information and information system security and privacy.

B2. VA INFORMATION CUSTODIAL LANGUAGE

- a. The Government shall receive unlimited rights to data/intellectual property first produced and delivered in the performance of this contract or order (hereinafter “contract”) unless expressly stated otherwise in this contract. This includes all rights to source code and all documentation created in support thereof. The primary clause used to define Government and Contractor data rights is FAR 52.227-14 Rights in Data – General. The primary clause used to define computer software license (not data/intellectual property first produced under this Contractor or order) is FAR 52.227-19, Commercial Computer Software License.
- b. Information made available to the Contractor by VA for the performance or administration of this contract will be used only for the purposes specified in the service agreement, SOW, PWS, PD, and/or contract. The Contractor shall not use VA information in any other manner without prior written approval from a VA Contracting Officer (CO). The primary clause used to define Government and Contractor data rights is FAR 52.227-14 Rights in Data – General.
- c. VA information will not be co-mingled with any other data on the Contractor’s information systems or media storage systems. The Contractor shall ensure compliance with Federal and VA requirements related to data protection, data encryption, physical data segregation, logical data segregation, classification requirements and media sanitization.
- d. VA reserves the right to conduct scheduled or unscheduled audits, assessments, or investigations of Contractor Information Technology (IT) resources to ensure information security is compliant with Federal and VA requirements. The Contractor shall provide all necessary access to records (including electronic and documentary materials related to the contracts and subcontracts) and support (including access to Contractor and Subcontractor staff associated with the

contract) to VA, VA's Office Inspector General (OIG), and/or Government Accountability Office (GAO) staff during periodic control assessments, audits, or investigations.

- e. The Contractor may only use VA information within the terms of the contract and applicable Federal law, regulations, and VA policies. If new Federal information security laws, regulations or VA policies become applicable after execution of the contract, the parties agree to negotiate contract modification and adjustment necessary to implement the new laws, regulations, and/or policies.
- f. The Contractor shall not make copies of VA information except as specifically authorized and necessary to perform the terms of the contract. If copies are made for restoration purposes, after the restoration is complete, the copies shall be destroyed in accordance with VA Directive 6500, VA Cybersecurity Program and VA Information Security Knowledge Service.
- g. If a Veterans Health Administration (VHA) contract is terminated for default or cause with a business associate, the related local Business Associate Agreement (BAA) shall also be terminated and actions taken in accordance with VHA Directive 1605.05, Business Associate Agreements. If there is an executed national BAA associated with the contract, VA will determine what actions are appropriate and notify the contractor.
- h. The Contractor shall store and transmit VA sensitive information in an encrypted form, using VA-approved encryption tools which are, at a minimum, Federal Information Processing Standards (FIPS) 140-2, Security Requirements for Cryptographic Modules (or its successor) validated and in conformance with VA Information Security Knowledge Service requirements. The Contractor shall transmit VA sensitive information using VA approved Transport Layer Security (TLS) configured with FIPS based cipher suites in conformance with National Institute of Standards and Technology (NIST) 800-52, Guidelines for the Selection, Configuration and Use of Transport Layer Security (TLS) Implementations.
- i. The Contractor's firewall and web services security controls, as applicable, shall meet or exceed VA's minimum requirements.
- j. Except for uses and disclosures of VA information authorized by this contract for performance of the contract, the Contractor may use and disclose VA information only in two situations: (i) in response to a qualifying order of a court of competent jurisdiction after notification to VA CO (ii) with written approval from the VA CO. The Contractor shall refer all requests for, demands for production of or inquiries about, VA information and information systems to the VA CO for response.
- k. Notwithstanding the provision above, the Contractor shall not release VA records protected by Title 38 U.S.C. § 5705, Confidentiality of medical quality-assurance records and/or Title 38 U.S.C. § 7332, Confidentiality of certain medical records pertaining to drug addiction, sickle cell anemia, alcoholism or alcohol abuse or infection with Human Immunodeficiency Virus (HIV). If the Contractor is in receipt

of a court order or other requests for the above-mentioned information, the Contractor shall immediately refer such court order or other requests to the VA CO for response.

- l. Information made available to the Contractor by VA for the performance or administration of this contract or information developed by the Contractor in performance or administration of the contract will be protected and secured in accordance with VA Directive 6500 and Identity and Access Management (IAM) Security processes specified in the VA Information Security Knowledge Service.
- m. Any data destruction done on behalf of VA by a Contractor shall be done in accordance with National Archives and Records Administration (NARA) requirements as outlined in VA Directive 6300, Records and Information Management, VA Handbook 6300.1, Records Management Procedures, and applicable VA Records Control Schedules.
- n. The Contractor shall provide its plan for destruction of all VA data in its possession according to VA Directive 6500 and NIST 800-88, Guidelines for Media Sanitization prior to termination or completion of this contract. If directed by the COR/CO, the Contractor shall return all Federal Records to VA for disposition.
- o. Any media, such as paper, magnetic tape, magnetic disks, solid state devices or optical discs that is used to store, process, or access VA information that cannot be destroyed shall be returned to VA. The Contractor shall hold the appropriate material until otherwise directed by the Contracting Officer's Representative (COR) or CO. Items shall be returned securely via VA-approved methods. VA sensitive information must be transmitted utilizing VA-approved encryption tools which are validated under FIPS 140-2 (or its successor) and NIST 800-52. If mailed, the Contractor shall send via a trackable method (USPS, UPS, FedEx, etc.) and immediately provide the COR/CO with the tracking information. Self-certification by the Contractor that the data destruction requirements above have been met shall be sent to the COR/CO within 30 business days of termination of the contract.
- p. All electronic storage media (hard drives, optical disks, CDs, back-up tapes, etc.) used to store, process or access VA information will not be returned to the Contractor at the end of lease, loan, or trade-in. Exceptions to this paragraph will only be granted with the written approval of the VA CO.

B3. ACCESS TO VA INFORMATION AND VA INFORMATION SYSTEMS

- a. A Contractor/Subcontractor shall request logical (technical) or physical access to VA information and VA information systems for their employees and subcontractors only to the extent necessary to perform the services specified in the solicitation or contract. This includes indirect entities, both affiliate of Contractor/Subcontractor and agent of Contractor/Subcontractor.

- b. Contractors and subcontractors shall sign the VA Information Security Rule of Behavior (ROB) before access is provided to VA information and information systems (see Section 4, Training, below). The ROB contains the minimum user compliance requirements and does not supersede any policies of VA facilities or other agency components which provide higher levels of protection to VA's information or information systems. Users who require privileged access shall complete the VA elevated privilege access request processes before privileged access is granted.
- c. All Contractors and Subcontractors working with VA information are subject to the same security investigative and clearance requirements as those of VA appointees or employees who have access to the same types of information. The level and process of background security investigations for contractors shall be in accordance with VA Directive and Handbook 0710, Personnel Suitability and Security Program. The Office of Human Resources and Administration/Operations, Security and Preparedness (HRA/OSP) is responsible for these policies and procedures. Contract personnel who require access to classified information or information systems shall have an appropriate security clearance. Verification of a Security Clearance shall be processed through the Special Security Officer located in HRA/OSP. Contractors shall conform to all requirements stated in the National Industrial Security Program Operating Manual (NISPOM).
- d. All Contractors and subcontractors shall comply with conditions specified in VAAR 852.204-71(d); Contractor operations required to be in United States. All Contractors and Subcontractors working with VA information must be permanently located within a jurisdiction subject to the law of the United States or its Territories to the maximum extent feasible. If services are proposed to be performed abroad the Contractor must state where all non-U.S. services are provided. The Contractor shall deliver to VA a detailed plan specifically addressing communications, personnel control, data protection and potential legal issues. The plan shall be approved by the COR/CO in writing prior to access being granted.
- e. The Contractor shall notify the COR/CO in writing immediately (no later than 24 hours) after personnel separation or occurrence of other causes. Causes may include the following:
 - (1) Contractor/Subcontractor personnel no longer has a need for access to VA information or VA information systems.
 - (2) Contractor/Subcontractor personnel are terminated, suspended, or otherwise has their work on a VA project discontinued for any reason.
 - (3) Contractor believes their own personnel or Subcontractor personnel may pose a threat to their company's working environment or to any company-owned property. This includes Contractor-owned assets, buildings, confidential data, customers, employees, networks, systems, trade secrets and/or VA data.

- (4) Any previously undisclosed changes to Contractor/Subcontractor background history are brought to light, including but not limited to changes to background investigation or employee record.
 - (5) Contractor/Subcontractor personnel have their authorization to work in the United States revoked.
 - (6) Agreement by which Contractor provides products and services to VA has either been fulfilled or terminated, such that VA can cut off electronic and/or physical access for Contractor personnel.
- f. In such cases of contract fulfillment, termination, or other causes; the Contractor shall take the necessary measures to immediately revoke access to VA network, property, information, and information systems (logical and physical) by Contractor/Subcontractor personnel. These measures include (but are not limited to): removing and then securing Personal Identity Verification (PIV) badges and PIV – Interoperable (PIV-I) access badges, VA-issued photo badges, credentials for VA facilities and devices, VA-issued laptops, and authentication tokens. Contractors shall notify the appropriate VA COR/CO immediately to initiate access removal.
 - g. Contractors/Subcontractors who no longer require VA accesses will return VA-issued property to VA. This property includes (but is not limited to): documents, electronic equipment, keys, and parking passes. PIV and PIV-I access badges shall be returned to the nearest VA PIV Badge Issuance Office. Once they have had access to VA information, information systems, networks and VA property in their possessions removed, Contractors shall notify the appropriate VA COR/CO.

B4. TRAINING

- a. All contractors and subcontractors requiring access to VA information and VA information systems shall successfully complete the following before being granted access to VA information and its systems:
 - (1) VA Privacy and Information Security Awareness and Rules of Behavior course (Talent Management System (TMS) #10176) initially and annually thereafter.
 - (2) Sign and acknowledge (electronically through TMS #10176) understanding of and responsibilities for compliance with the Organizational Rules of Behavior, relating to access to VA information and information systems initially and annually thereafter; and
 - (3) Successfully complete any additional cyber security or privacy training, as required for VA personnel with equivalent information system or information access [to be defined by the VA program official and provided to the VA CO for inclusion in the solicitation document – i.e., any role-based information security training].

- b. The Contractor shall provide to the COR/CO a copy of the training certificates and certification of signing the Organizational Rules of Behavior for each applicable employee within five days of the initiation of the contract and annually thereafter, as required.
- c. Failure to complete the mandatory annual training is grounds for suspension or termination of all physical or electronic access privileges and removal from work on the contract until such time as the required training is complete.

B5. SECURITY INCIDENT INVESTIGATION

- a. The Contractor, Subcontractor, their employees, or business associates shall immediately (within one hour) report suspected security / privacy incidents to the VA OIT's Enterprise Service Desk (ESD) by calling (855) 673-4357 (TTY: 711). The ESD is OIT's 24/7/365 single point of contact for IT-related issues. After reporting to the ESD, the Contractor, Subcontractor, their employees, or business associates shall, within one hour, provide the COR/CO the incident number received from the ESD.
- b. To the extent known by the Contractor/Subcontractor, the Contractor/Subcontractor's notice to VA shall identify the information involved and the circumstances surrounding the incident, including the following:
 - (1) The date and time (or approximation of) the Security Incident occurred.
 - (2) The names of individuals involved (when applicable).
 - (3) The physical and logical (if applicable) location of the incident.
 - (4) Why the Security Incident took place (i.e., catalyst for the failure).
 - (5) The amount of data belonging to VA believed to have been compromised.
 - (6) The remediation measures the Contractor is taking to ensure no future incidents of a similar nature.
- c. After the Contractor has provided the initial detailed incident summary to VA, they will continue to provide written updates on any new and relevant circumstances or facts they discover. The Contractor, Subcontractor, and their employees shall fully cooperate with VA or third-party entity performing an independent risk analysis on behalf of VA. Failure to cooperate may be deemed a material breach and grounds for contract termination.
- d. VA IT Contractors shall follow VA Handbook 6500, Risk Management Framework for VA Information Systems VA Information Security Program, and VA Information Security Knowledge Service guidance for implementing an Incident Response Plan or integrating with an existing VA implementation.

- e. In instances of theft or break-in or other criminal activity, the Contractor/Subcontractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of jurisdiction, including the VA OIG, and the VA Office of Security and Law Enforcement. The Contractor, its employees, and its Subcontractors and their employees shall cooperate with VA and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The Contractor/Subcontractor shall cooperate with VA in any civil litigation to recover VA information, obtain monetary or other compensation from a third party for damages arising from any incident, or obtain injunctive relief against any third party arising from, or related to, the incident.
- f. The Contractor shall comply with VA Handbook 6500.2, Management of Breaches Involving Sensitive Personal Information, which establishes the breach management policies and assigns responsibilities for the oversight, management and reporting procedures associated with managing of breaches.
- g. With respect to unsecured Protected Health Information (PHI), the Contractor is deemed to have discovered a data breach when the Contractor knew or should have known of breach of such information. When a business associate is part of VHA contract, notification to the covered entity (VHA) shall be made in accordance with the executed BAA.
- h. If the Contractor or any of its agents fails to protect VA sensitive personal information or otherwise engages in conduct which results in a data breach involving any VA sensitive personal information the Contractor/Subcontractor processes or maintains under the contract; the Contractor shall pay liquidated damages to the VA as set forth in clause [852.211-76, Liquidated Damages—Reimbursement for Data Breach Costs](#).

B6. INFORMATION SYSTEM DESIGN AND DEVELOPMENT

- a. Information systems designed or developed on behalf of VA at non-VA facilities shall comply with all applicable Federal law, regulations, and VA policies. This includes standards for the protection of electronic Protected Health Information (PHI), outlined in 45 C.F.R. Part 164, Subpart C and information and system security categorization level designations in accordance with FIPS 199, Standards for Security Categorization of Federal Information and Information Systems and FIPS 200, Minimum Security Requirements for Federal Information Systems. Baseline security controls shall be implemented commensurate with the FIPS 199 system security categorization (reference VA Handbook 6500 and VA Trusted Internet Connections (TIC) Architecture).
- b. Contracted new developments require creation, testing, evaluation, and authorization in compliance with VA Assessment and Authorization (A&A) processes in VA Handbook 6500 and VA Information Security Knowledge Service to obtain an Authority to Operate (ATO). VA Directive 6517, Risk Management Framework for Cloud Computing Services, provides the security and privacy requirements for cloud environments.

- c. VA IT Contractors, Subcontractors and third-party service providers shall address and/or integrate applicable VA Handbook 6500, VA Handbook 6517, Risk Management Framework for Cloud Computing Services and Information Security Knowledge Service specifications in delivered IT systems/solutions, products and/or services. If systems/solutions, products and/or services do not directly match VA security requirements, the Contractor shall work through the COR/CO to identify the VA organization responsible for governance or resolution. Contractors shall comply with FAR 39.1, specifically the prohibitions referenced.
- d. The Contractor (including producers and resellers) shall comply with Office of Management and Budget (OMB) M-26-05 when using third-party software on VA information systems or otherwise affecting the VA information. This includes new software purchases and software renewals for software developed or modified by major version change after the issuance date of M-26-05 (January 23, 2026). The term “software” includes firmware, operating systems, applications and application services (e.g., cloud-based software), as well as products containing software. The Contractor shall provide a self-attestation that secure software development practices are utilized as outlined by Executive Order (EO)14028 and NIST Guidance. A third-party assessment provided by either a certified Federal Risk and Authorization Management Program (FedRAMP) Third Party Assessor Organization (3PAO) or one approved by the agency will be acceptable in lieu of a software producer's self-attestation.
- e. The Contractor shall ensure all delivered applications, systems and information systems are compliant with Homeland Security Presidential Directive (HSPD) 12 and VA Identity and Access management (IAM) enterprise identity management requirements as set forth in OMB M-19-17, M-05-24, FIPS 201-3, Personal Identity Verification (PIV) of Federal Employees and Contractors (or its successor), M-21-31 and supporting NIST guidance. This applies to Commercial Off-The-Shelf (COTS) product(s) that the Contractor did not develop, all software configurations and all customizations.
- f. The Contractor shall ensure all Contractor delivered applications and systems provide user authentication services compliant with VA Handbook 6500, VA Information Security Knowledge Service, IAM enterprise requirements and NIST 800-63, Digital Identity Guidelines, for direct, assertion-based authentication and/or trust-based authentication, as determined by the design and integration patterns. Direct authentication at a minimum must include Public Key Infrastructure (PKI) based authentication supportive of PIV and/or Common Access Card (CAC), as determined by the business need and compliance with VA Information Security Knowledge Service specifications.
- g. The Contractor shall use VA authorized technical security baseline configurations and certify to the COR that applications are fully functional and operate correctly as intended on systems in compliance with VA baselines prior to acceptance or connection into an authorized VA computing environment. If the Defense Information Systems Agency (DISA) has created a Security Technical Implementation Guide (STIG) for the technology, the Contractor may configure to

comply with that STIG. If VA determines a new or updated VA configuration baseline needs to be created, the Contractor shall provide required technical support to develop the configuration settings. FAR 39.1 requires the population of operating systems and applications includes all listed on the NIST National Checklist Program Checklist Repository,

- h. The standard installation, operation, maintenance, updating and patching of software shall not alter the configuration settings from VA approved baseline configuration. Software developed for VA must be compatible with VA enterprise installer services and install to the default "program files" directory with silently install and uninstall. The Contractor shall perform testing of all updates and patching prior to implementation on VA systems.
- i. Applications designed for normal end users will run in the standard user context without elevated system administration privileges.
- j. The Contractor-delivered solutions shall reside on VA approved operating systems. Exceptions to this will only be granted with the written approval of the COR/CO.
- k. The Contractor shall design, develop, and implement security and privacy controls in accordance with the provisions of VA security system development life cycle outlined in NIST 800-37, Risk Management Framework for Information Systems and Organizations: A System Life Cycle Approach for Security and Privacy, VA Directive and Handbook 6500, and VA Handbook 6517.
- l. The Contractor shall comply with the Privacy Act of 1974 (the Act), FAR 52.224-2 Privacy Act, and VA rules and regulations issued under the Act in the design, development, or operation of any system of records on individuals to accomplish a VA function.
- m. The Contractor shall ensure the security of all procured or developed information systems, systems, major applications, minor applications, enclaves and platform information technologies, including their subcomponents (hereinafter referred to as "Information Systems") throughout the life of this contract and any extension, warranty, or maintenance periods. This includes security configurations, workarounds, patches, hotfixes, upgrades, replacements and any physical components which may be necessary to remediate all security vulnerabilities published or known to the Contractor anywhere in the information systems (including systems, operating systems, products, hardware, software, applications and firmware). The Contractor shall ensure security fixes do not negatively impact the Information Systems.
- n. When the Contractor is responsible for operations or maintenance of the systems, the Contractor shall apply the security fixes within the timeframe specified by the associated controls on the VA Information Security Knowledge Service. When security fixes involve installing third party patches (such as Microsoft OS patches or Adobe Acrobat), the Contractor shall provide written

notice to the VA COR/CO that the patch has been validated as to not affecting the Systems within 10 business days.

B7. INFORMATION SYSTEM HOSTING, OPERATION, MAINTENANCE OR USE

- a. The Contractor shall comply with all Federal laws, regulations, and VA policies for Information systems (cloud and non-cloud) that are hosted, operated, maintained, or used on behalf of VA at non-VA facilities. Security controls for collecting, processing, transmitting, and storing of VA sensitive information, must be in place. The controls will be tested by VA or a VA sanctioned 3PAO and approved by VA prior to hosting, operation, maintenance or use of the information system or systems by or on behalf of VA. This includes conducting compliance risk assessments, security architecture analysis, routine vulnerability scanning, system patching, change management procedures and the completion of an acceptable contingency plan for each system. The Contractor's security control procedures shall be the same as procedures used to secure VA-operated information systems.
- b. Outsourcing (Contractor facility, equipment, or staff) of systems or network operations, telecommunications services or other managed services require Assessment and Authorization (A&A) of the Contractor's systems in accordance with VA Handbook 6500 as specified in VA Information Security Knowledge Service. Major changes to the A&A package may require reviewing and updating all the documentation associated with the change. The Contractor's cloud computing systems shall comply with FedRAMP and VA Directive 6517 requirements.
- c. The Contractor shall return all electronic storage media (hard drives, optical disks, CDs, back-up tapes, etc.) on non-VA leased or non-VA owned IT equipment used to store, process or access VA information to VA in accordance with A&A package requirements. This applies when the contract is terminated or completed and prior to disposal of media. The Contractor shall provide its plan for destruction of all VA data in its possession according to VA Information Security Knowledge Service requirements and NIST 800-88. The Contractor shall send a self-certification that the data destruction requirements above have been met to the COR/CO within 30 business days of termination of the contract.
- d. All external internet connections to VA network involving VA information must be in accordance with VA Trusted Internet Connection (TIC) Reference Architecture and VA Directive and Handbook 6513, Secure External Connections and reviewed and approved by VA prior to implementation. Government-owned Contractor-operated systems, third party or business partner networks require a Memorandum of Understanding (MOU) and Interconnection Security Agreements (ISA).
- e. Contractor procedures shall be subject to periodic, announced, or unannounced assessments by VA officials, the OIG or a 3PAO. The physical security aspects associated with Contractor activities are also subject to such assessments. The Contractor shall report, in writing, any deficiencies noted during the above

assessment to the VA COR/CO. The Contractor shall use VA's defined processes to document planned remedial actions that address identified deficiencies in information security policies, procedures, and practices. The Contractor shall correct security deficiencies within the timeframes specified in the VA Information Security Knowledge Service.

- f. All major information system changes which occur in the production environment shall be reviewed by the VA to determine the impact on privacy and security of the system. Based on the review results, updates to the Authority to Operate (ATO) documentation and parameters may be required to remain in compliance with VA Handbook 6500 and VA Information Security Knowledge Service requirements.
- g. The Contractor shall conduct an annual privacy and security self-assessment on all information systems and outsourced services as required. Copies of the assessment shall be provided to the COR/CO. The VA/Government reserves the right to conduct assessment using government personnel or a third-party if deemed necessary. The Contractor shall correct or mitigate any weaknesses discovered during the assessment.
- h. VA prohibits the installation and use of personally owned or Contractor-owned equipment or software on VA information systems. If non-VA owned equipment must be used to fulfill the requirements of a contract, it must be stated in the service agreement, SOW, PWS, PD or contract. All security controls required for government furnished equipment must be utilized in VA approved Other Equipment (OE). Configuration changes to the Contractor OE, must be funded by the owner of the equipment. All remote systems must use a VA-approved antivirus software and a personal (host-based or enclave based) firewall with a VA-approved configuration. The Contractor shall ensure software on OE is kept current with all critical updates and patches. Owners of approved OE are responsible for providing and maintaining the anti-virus software and the firewall on the non-VA owned OE. Approved Contractor OE will be subject to technical inspection at any time.
- i. The Contractor shall notify the COR/CO within one hour of disclosure or successful exploits of any vulnerability which can compromise the confidentiality, integrity, or availability of the information systems. The system or effected component(s) need(s) to be isolated from the network. A forensic analysis needs to be conducted jointly with VA. Such issues will be remediated as quickly as practicable, but in no event longer than the timeframe specified by VA Information Security Knowledge Service. If sensitive personal information is compromised reference VA Handbook 6500.2 and Section 5, Security Incident Investigation.
- j. For cases wherein the Contractor discovers material defects or vulnerabilities impacting products and services they provide to VA, the Contractor shall develop and implement policies and procedures for disclosure to VA, as well as remediation. The Contractor shall, within 30 business days of discovery, document a summary of these vulnerabilities or defects. The documentation will

include a description of the potential impact of each vulnerability and material defect, compensating security controls, mitigations, recommended corrective actions, root cause analysis and/or workarounds (i.e., monitoring). Should there exist any backdoors in the products or services they provide to VA (referring to methods for bypassing computer authentication), the Contractor shall provide the VA CO/CO written assurance they have permanently remediated these backdoors.

- k. All other vulnerabilities, including those discovered through routine scans or other assessments, will be remediated based on risk, in accordance with the remediation timelines specified by the VA Information Security Knowledge Service and/or the applicable timeframe mandated by Cybersecurity & Infrastructure Security Agency (CISA) Binding Operational Directive (BOD) 22-01 and BOD 19-02 for Internet-accessible systems. Exceptions to this paragraph will only be granted with the approval of the COR/CO.

B8. SECURITY AND PRIVACY CONTROLS COMPLIANCE TESTING, ASSESSMENT AND AUDITING

- a. Should VA request it, the Contractor shall provide a copy of their (corporation's, sole proprietorship's, partnership's, limited liability company (LLC), or other business structure entity's) policies, procedures, evidence and independent report summaries related to specified cybersecurity frameworks (International Organization for Standardization (ISO), NIST Cybersecurity Framework (CSF), etc.). VA or its third-party/partner designee (if applicable) are further entitled to perform their own audits and security/penetration tests of the Contractor's IT or systems and controls, to ascertain whether the Contractor is complying with the information security, network or system requirements mandated in the agreement between VA and the Contractor.
- b. Any audits or tests of the Contractor or third-party designees/partner VA elects to carry out will commence within 30 business days of VA notification. Such audits, tests and assessments may include the following: (a): security/penetration tests which both sides agree will not unduly impact Contractor operations; (b): interviews with pertinent stakeholders and practitioners; (c): document review; and (d): technical inspections of networks and systems the Contractor uses to destroy, maintain, receive, retain, or use VA information.
- c. As part of these audits, tests and assessments, the Contractor shall provide all information requested by VA. This information includes, but is not limited to, the following: equipment lists, network or infrastructure diagrams, relevant policy documents, system logs or details on information systems accessing, transporting, or processing VA data.
- d. The Contractor and at its own expense, shall comply with any recommendations resulting from VA audits, inspections and tests. VA further retains the right to view any related security reports the Contractor has generated as part of its own security assessment. The Contractor shall also notify VA of the existence of any

such security reports or other related assessments, upon completion and validation.

- e. VA appointed auditors or other government agency partners may be granted access to such documentation on a need-to-know basis and coordinated through the COR/CO. The Contractor shall comply with recommendations which result from these regulatory assessments on the part of VA regulators and associated government agency partners.

B9. PRODUCT INTEGRITY, AUTHENTICITY, PROVENANCE, ANTI-COUNTERFEIT AND ANTI-TAMPERING

- a. The Contractor shall comply with Code of Federal Regulations (CFR) Title 15 Part 7, "Securing the Information and Communications Technology and Services (ICTS) Supply Chain", which prohibits ICTS Transactions from foreign adversaries. ICTS Transactions are defined as any acquisition, importation, transfer, installation, dealing in or use of any information and communications technology or service, including ongoing activities, such as managed services, data transmission, software updates, repairs or the platforming or data hosting of applications for consumer download.
- b. When contracting terms require the Contractor to procure equipment, the Contractor shall purchase or acquire the equipment from an Original Equipment Manufacturer (OEM) or an authorized reseller of the OEM. The Contractor shall attest that equipment procured from an OEM or authorized reseller or distributor are authentic. If procurement is unavailable from an OEM or authorized reseller, the Contractor shall submit in writing, details of the circumstances prohibiting this from happening and procure a product waiver from the VA COR/CO.
- c. All Contractors shall establish, implement, and provide documentation for risk management practices for supply chain delivery of hardware, software (to include patches) and firmware provided under this agreement. Documentation will include chain of custody practices, inventory management program, information protection practices, integrity management program for sub-supplier provided components, and replacement parts requests. The Contractor shall make spare parts available. All Contractor(s) shall specify how digital delivery for procured products, including patches, will be validated and monitored to ensure consistent delivery. The Contractor shall apply encryption technology to protect procured products throughout the delivery process.
- d. If a Contractor provides software or patches to VA, the Contractor shall publish or provide a hash conforming to the FIPS Security Requirements for Cryptographic Modules (FIPS 140-2 or successor).
- e. The Contractor shall provide a software bill of materials (SBOM) for procured (to include licensed products) and consist of a list of components and associated metadata which make up the product. SBOMs must be generated in one of the data formats defined in the National Telecommunications and Information

Administration (NTIA) report “The Minimum Elements for a Software Bill of Materials (SBOM).”

- f. Contractors shall use or arrange for the use of trusted channels to ship procured products, such as U.S. registered mail and/or tamper-evident packaging for physical deliveries.
- g. Throughout the delivery process, the Contractor shall demonstrate a capability for detecting unauthorized access (tampering).
- h. The Contractor shall demonstrate chain-of-custody documentation for procured products and require tamper-evident packaging for the delivery of this hardware.

B10. VIRUSES, FIRMWARE, AND MALWARE

- a. The Contractor shall execute due diligence to ensure all provided software and patches, including third-party patches, are free of viruses and/or malware before releasing them to or installing them on VA information systems.
- b. The Contractor warrants it has no knowledge of and did not insert, any malicious virus and/or malware code into any software or patches provided to VA which could potentially harm or disrupt VA information systems. The Contractor shall use due diligence, if supplying third-party software or patches, to ensure the third-party has not inserted any malicious code and/or virus which could damage or disrupt VA information systems.
- c. The Contractor shall provide or arrange for the provision of technical justification as to why any “false positive” hit has taken place to ensure their code’s supply chain has not been compromised. Justification may be required, but is not limited to, when install files, scripts, firmware, or other Contractor-delivered software solutions (including third-party install files, scripts, firmware, or other software) are flagged as malicious, infected, or suspicious by an anti-virus vendor.
- d. The Contractor shall not upload (intentionally or negligently) any virus, worm, malware or any harmful or malicious content, component and/or corrupted data/source code (hereinafter “virus or other malware”) onto VA computer and information systems and/or networks. If introduced (and this clause is violated), upon written request from the VA CO, the Contractor shall:
 - (1) Take all necessary action to correct the incident, to include any and all assistance to VA to eliminate the virus or other malware throughout VA’s information networks, computer systems and information systems; and
 - (2) Use commercially reasonable efforts to restore operational efficiency and remediate damages due to data loss or data integrity damage, if the virus or other malware causes a loss of operational efficiency, data loss, or damage to data integrity.

B11. CRYPTOGRAPHIC REQUIREMENT

- a. The Contractor shall document how the cryptographic system supporting the Contractor's products and/or services protect the confidentiality, data integrity, authentication and non-repudiation of devices and data flows in the underlying system.
- b. The Contractor shall use only approved cryptographic methods as defined in FIPS 140-2 (or its successor) and NIST 800-52 standards when enabling encryption on its products.
- c. The Contractor shall provide or arrange for the provision of an automated remote key-establishment method which protects the confidentiality and integrity of the cryptographic keys.
- d. The Contractor shall ensure emergency re-keying of all devices can be remotely performed within 30 business days.
- e. The Contractor shall provide or arrange for the provision of a method for updating cryptographic primitives or algorithms.

B12. PATCHING GOVERNANCE

- a. The Contractor shall provide documentation detailing the patch management, vulnerability management, mitigation and update processes (to include third-party) prior to the connection of electronic devices, assets or equipment to VA's assets. This documentation will include information regarding the following:
 - (1) The resources and technical capabilities to sustain the program or process (e.g., how the integrity of a patch is validated by VA); and.
 - (2) The approach and capability to remediate newly reported zero-day vulnerabilities for Contractor products.
- b. The Contractor shall verify and provide documentation all procured products (including third-party applications, hardware, software, operating systems, and firmware) have appropriate updates and patches installed prior to delivery to VA.
- c. The Contractor shall provide or arrange the provision of appropriate software and firmware updates to remediate newly discovered vulnerabilities or weaknesses for their products and services within 30 days of discovery. Updates to remediate critical or emergent vulnerabilities will be provided within seven business days of discovery. If updates cannot be made available by Contractor within these time periods, the Contractor shall submit mitigations, methods of exploit detection and/or workarounds to the COR/CO prior to the above deadlines.
- d. The Contractor shall provide or arrange for the provision of appropriate hardware, software and/or firmware updates, when those products, including open-source software, are provided to the VA, to remediate newly discovered

vulnerabilities or weaknesses. Remediations of products or services provided to the VA's system environment must be provided within 30 business days of availability from the original supplier and/or patching source. Updates to remediate critical vulnerabilities applicable to the Contractor's use of the third-party product in its system environment will be provided within seven business days of availability from the original supplier and/or patching source. If applicable third-party updates cannot be integrated, tested and made available by Contractor within these time periods, mitigations and/or workarounds will be provided to the COR/CO before the above deadlines.

B13. SPECIALIZED DEVICES/SYSTEMS (MEDICAL DEVICES, SPECIAL PURPOSE SYSTEMS, RESEARCH SCIENTIFIC COMPUTING)

- a. Contractor supplies/delivered Medical Devices, Special Purpose Systems-Operational Technology (SPS-OT) and Research Scientific Computing Devices shall comply with all applicable Federal law, regulations, and VA policies. New developments require creation, testing, evaluation, and authorization in compliance with processes specified on the Specialized Device Cybersecurity Department Enterprise Risk Management (SDCD-ERM) Portal, VA Directive 6550, Pre-Procurement Assessment and Implementation of Medical Devices/Systems, VA Handbook 6500, and the VA Information Security Knowledge Service. Deviations from Federal law, regulations, and VA Policy are identified and documented as part of VA Directive 6550 and/or the VA Enterprise Risk Analysis (ERA) processes for Specialized Devices/Systems processes.
- b. All Contractors and third-party service providers shall address and/or integrate applicable VA Handbook 6500 and Information Security Knowledge Service specifications in delivered IT systems/solutions, products and/or services. If systems/solutions, products and/or services do not directly match VA security requirements, the Contractor shall work through the COR/CO for governance or resolution.
- c. The Contractor shall certify to the COR/CO that devices/systems that have completed the VA Enterprise Risk Analysis (ERA) process for Specialized Devices/Systems are fully functional and operate correctly as intended. Devices/systems must follow the VA ERA authorized configuration prior to acquisition and connection to the VA computing environment. If VA determines a new VA ERA needs to be created, the Contractor shall provide required technical support to develop the configuration settings. Major changes to a previously approved device/system will require a new ERA.
- d. The Contractor shall comply with all practices documented by the Food Drug and Administration (FDA) Premarket Submission for Management of Cybersecurity in Medical Devices and Postmarket Management of Cybersecurity in Medical Devices.
- e. The Contractor shall design devices capable of accepting all applicable security patches with or without the support of the Contractor personnel. If patching can only be completed by the Contractor, the Contractor shall commit the resources

needed to patch all applicable devices at all VA locations. If unique patching instructions or packaging is needed, the Contractor shall provide the necessary information in conjunction with the validation/testing of the patch. The Contractor shall apply security patches within 30 business days of the patch release and have a formal tracking process for any security patches not implemented to include explanation when a device cannot be patched.

- f. The Contractor shall provide devices able to install and maintain VA-approved antivirus capabilities with the capability to quarantine files and be updated as needed in response to incidents. Alternatively, a VA-approved whitelisting application may be used when the Contractor cannot install an anti-virus / anti-malware application.
- g. The Contractor shall verify and document all software embedded within the device does not contain any known viruses or malware before delivery to or installation at a VA location.
- h. Devices and other equipment or systems containing media (hard drives, optical disks, solid state, and storage via chips/firmware) with VA sensitive information will be returned to the Contractor with media removed. When the contract requires return of equipment, the options available to the Contractor are the following:
 - (1) The Contractor shall accept the system without the drive, firmware and solid state.
 - (2) VA's initial device purchase includes a spare drive or other replacement media which must be installed in place of the original drive at time of turn-in; or
 - (3) Due to the highly specialized and sometimes proprietary hardware and software associated with the device, if it is not possible for VA to retain the hard drive, firmware, and solid state, then:
 - (a) The equipment Contractor shall have an existing BAA if the device being traded in has sensitive information stored on it and hard drive(s) from the system are being returned physically intact.
 - (b) Any fixed hard drive, Complementary Metal-Oxide-Semiconductor (CMOS), Programmable Read-Only Memory (PROM), solid state and firmware on the device must be non-destructively sanitized to the greatest extent possible without negatively impacting system operation. Selective clearing down to patient data folder level is recommended using VA approved and validated overwriting technologies/methods/tools. Applicable media sanitization specifications need to be pre-approved and described in the solicitation, contract, or order.

B14. DATA CENTER PROVISIONS

- a. The Contractor shall ensure the VA network is accessed by in accordance with VA Directive 6500 and IAM security processes specified in the VA Information Security Knowledge Service.
- b. The Contractor shall ensure network infrastructure and data availability in accordance with VA information system business continuity procedures specified in the VA Information Security Knowledge Service.
- c. The Contractor shall ensure any connections to the internet or other external networks for information systems occur through managed interfaces utilizing VA approved boundary protection devices (e.g., internet proxies, gateways, routers, firewalls, guards or encrypted tunnels).
- d. The Contractor shall encrypt all traffic across the segment of the Wide Area Network (WAN) it manages and no unencrypted Out of Band (OOB) Internet Protocol (IP) traffic will traverse the network.
- e. The Contractor shall ensure tunnel endpoints are routable addresses at each VA operating site.
- f. The Contractor shall secure access from Local Area Networks (LANs) at co-located sites in accordance with VA TIC Reference Architecture, VA Directive and Handbook 6513, and MOU/ISA process specified in the VA Information Security Knowledge Service.

SECTION C - CONTRACT CLAUSES**C.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)**

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>
<https://www.va.gov/oal/library/vaar/>

(End of Clause)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT ALTERNATE I (NOV 2021)	JUN 2020
52.203-13	CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT	NOV 2021
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS	NOV 2023
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN 2017
52.204-9	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	JAN 2011
52.204-13	SYSTEM FOR AWARD MANAGEMENT—MAINTENANCE (DEVIATION)	NOV 2025
52.204-15	SERVICE CONTRACT REPORTING REQUIREMENTS FOR INDEFINITE-DELIVERY CONTRACTS (DEVIATION)	NOV 2025
52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (DEVIATION)	OCT 2025
52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS (DEVIATION DATE)	NOV 2025
52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS (DEVIATION)	OCT 2015
52.212-4	CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION)	OCT 2023
52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS (DEVIATION)	NOV 2025
52.219-9	SMALL BUSINESS SUBCONTRACTING PLAN (DEVIATION)	NOV 2025
52.219-16	LIQUIDATED DAMAGES—SUBCONTRACTING PLAN (DEVIATION)	NOV 2025
52.222-3	CONVICT LABOR (DEVIATION)	NOV 2025
52.222-35	EQUAL OPPORTUNITY FOR VETERANS (DEVIATION)	NOV 2025
52.222-36	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (DEVIATION)	NOV 2025
52.222-37	EMPLOYMENT REPORTS ON VETERANS (DEVIATION)	NOV 2025

52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEVIATION)	NOV 2025
52.222-50	COMBATING TRAFFICKING IN PERSONS (DEVIATION)	NOV 2025
52.224-3	PRIVACY TRAINING ALTERNATE I (JAN 2017)	JAN 2017
52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING	MAY 2024
52.227-1	AUTHORIZATION AND CONSENT	JUN 2020
52.227-2	NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT	JUN 2020
52.227-14	RIGHTS IN DATA—GENERAL	MAY 2014
52.227-16	ADDITIONAL DATA REQUIREMENTS	JUN 1987
52.229-12	TAX ON CERTAIN FOREIGN PROCUREMENTS (DEVIATION DATE)	SEP 2025
52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER-SYSTEM FOR AWARD MANAGEMENT	OCT 2018
52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS	MAR 2023
52.233-3	PROTEST AFTER AWARD (DEVIATION DATE)	SEP 2025
52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (DEVIATION DATE)	SEP 2025
52.240-91	SECURITY PROHIBITIONS AND EXCLUSIONS (DEVIATION DATE)	NOV 2025
52.240-93	BASIC SAFEGAURDING OF COVERED CONTRACTOR INFORMATION SYSTEMS (DEVIATION DATE)	NOV 2025
52.242-5	PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS	JAN 2017
52.242-13	BANKRUPTCY	JUL 1995
52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION DATE)	OCT 2025
852.201-70	CONTRACTING OFFICER'S REPRESENTATIVE	DEC 2022
852.203-70	COMMERCIAL ADVERTISING	MAY 2018
852.204-70	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	MAY 2020
852.204-71	INFORMATION AND INFORMATION SYSTEMS SECURITY	FEB 2023
852.222-71	COMPLIANCE WITH EXECUTIVE ORDER 13899 (DEVIATION)	APR 2025
852.232-72	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS	NOV 2018
852.239-70	SECURITY REQUIREMENTS FOR INFORMATION TECHNOLOGY RESOURCES	FEB 2023
852.239-76	INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY	FEB 2023
852.215-70	SERVICE-DISABLED VETERAN-OWNED AND VETERAN-OWNED SMALL BUSINESS EVALUATION FACTORS (DEVIATION)	JAN 2023
852.215-71	EVALUATION FACTOR COMMITMENTS	OCT 2019
852.219-70	VA SMALL BUSINESS SUBCONTRACTING PLAN MINIMUM REQUIREMENTS (DEVIATION)	JAN 2023
852.239-71	INFORMATION SYSTEM SECURITY PLAN AND ACCREDITATION	FEB 2023

C.2 52.216-18 ORDERING (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from date of contract award and ordering can continue for 60 months thereafter.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when—

- (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
- (2) If sent by fax, the Government transmits the order to the Contractor's fax number; or
- (3) If sent electronically, the Government either—
 - (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or
 - (ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of Clause)

C.3 52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$2,500.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor—

- (1) Any order for a single item in excess of \$775,720,000.00;
- (2) Any order for a combination of items in excess of \$775,720,000.00; or
- (3) A series of orders from the same ordering office within 5 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 7 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

C.4 52.216-22 INDEFINITE QUANTITY (NOV 2025) (DEVIATION) (OCT 2025) (DEVIATION)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after 60 months after expiration of the basic contract.

(End of Clause)

C.5 VAAR 852.204-72 PERSONNEL VETTING AND CREDENTIALING (MAR 2026)

(a) Definitions. As used in this clause –

VA Information system is the same as information system and means, pursuant to 38 U.S.C. 5727, a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information whether automated or manual.

VA sensitive information means all VA data, on any storage media or in any form or format, which requires protection due to the risk of harm that could result from inadvertent or deliberate disclosure, alteration, or destruction of the information and includes sensitive personal information. The term includes information where improper use or disclosure could adversely affect the ability of VA to accomplish its mission, proprietary information, records about individuals requiring protection under various confidentiality provisions such as the Privacy Act and the HIPAA Privacy Rule, and information that can be withheld under the Freedom of Information Act. Examples of VA sensitive information include the following: individually-identifiable medical, benefits, and personnel information; financial, budgetary, research, quality assurance, confidential commercial, critical infrastructure, investigatory, and law enforcement information; information that is confidential and privileged in litigation such as information protected by the deliberative process privilege, attorney work-product privilege, and the attorney client privilege; and other information which, if released, could result in violation of law or harm or unfairness to any individual or group, or could adversely affect the national interest or the conduct of Federal programs.

(b) *General*. Contractor personnel assigned to work for or on behalf of VA must undergo a background investigation commensurate with the risk and sensitivity level designation associated with the work to be performed at the level indicated in the contract. The Contractor and subcontractors shall comply with VA Directive/Handbook 0710, Personnel Security and Suitability Program, which can be accessed at: <https://vaww.va.gov/vapubs/index.cfm>

(c) *Risk and Sensitivity Levels*. The risk and sensitivity levels that apply to any personnel providing services under this contract are all Tier 1/Low Risk.

*VA Administrations, organizations and staff offices will use the OPM [Position Designation Tool](#).

Security clearances are granted to individuals with a specific requirement for access to classified material (for example, Confidential, Secret and Top Secret). Contractor personnel that are required to obtain a security clearance will be subject to a Tier 3 or Tier 5 investigation. The following sensitivity designations have been assigned for the identified Tier 3 and Tier 5 required by this contract: Not Applicable

(d) *Fitness*. The results from a background investigation are used to determine if an individual's fitness is sufficient for that individual to perform work for or on behalf of VA in the position identified in this contract. Contractor fitness determinations are made in accordance with 5 CFR Part 731.202.

Fitness requirements for employment are separate and distinct from job qualifications. If a Contractor or subcontractor employee is found to be unsuitable or unfit to provide services under this contract, the Contractor shall immediately remove the employee from working on this contract and take those necessary steps that restrict the employee's logical access to VA data, information, VA sensitive information, or information technology or VA information systems containing such data or information.

The Contractor shall advise the employee that they are not permitted to access any VA controlled building or real property in relation to this contract.

The removal of an unfit Contractor or subcontractor employee does not alleviate the Contractor from satisfying the requirements of this contract. The Government will not reimburse the Contractor for any costs associated with the recruitment/replacement of an employee or subcontractor employee who is found to be unfit.

(e) *Identification Cards.* The Government will provide a Personal Identification Verification (PIV) card or other identification card, as necessary, to fit Contractor personnel who require physical access to VA facilities and/or logical access to VA data, information, VA sensitive information, or information technology or VA information systems containing such data or information. Contractor and subcontractor personnel shall prominently display their PIV/identification card on their persons while working at a VA facility and shall present their PIV/identification card for inspection upon request by a VA official. The Contractor must surrender the employee or subcontractor employee's PIV/identification card in accordance with the requirements set forth in Directive/Handbook 0735 when any of the following events occur:

1. When no longer needed for contract performance.
2. Upon completion of the Contractor/subcontractor employee's employment.
3. Upon contract completion or termination.

(f) *Lost/stolen.* Immediately upon detection, the Contractor shall report a lost or stolen PIV/identification card to the Government authorities as identified in Directive/Handbook 0735. Within 48 hours of reporting the lost/stolen PIV/identification card, the Contractor shall submit to the Program Manager an incident report that describes the relevant facts and circumstances regarding the loss/theft. If the loss/theft was reported by the Contractor to the local police, the Contractor shall further submit a copy of the final police report to the Program Manager within 48 hours of the report being made available by the local police department. The Government will not reimburse the Contractor for any costs that result from lost/stolen PIV/identification card(s).

(g) *Regular Reporting.* The Contractor shall submit a status report to PIV Sponsor within 5 working days after the end of each calendar quarter and as requested by the Government in order to initiate contract closeout procedures. The report must provide the status of each contractor/subcontractor employee who is required to have a PIV/identification card during the performance of the contract. The report shall identify the Contractor and the contract number, and list the following status for each contractor/subcontractor employee who holds a PIV/identification card under this contract:

1. Contractor/subcontractor employee name.
2. Name of VA facility where Contractor/subcontractor employee works, if applicable.
3. Date background check submitted for Contractor/subcontractor employee.
4. Date PIV/identification card issued to Contractor/subcontractor employee.
5. Contractor/subcontractor employee's PIV/identification card number, as applicable.

6. Date Contractor/subcontractor employee no longer has need for PIV/identification card.
7. Date Contractor notified VA that PIV/identification card is no longer required.
8. Date Contractor returned PIV/identification card was returned to VA.

(h) *Flow down of clause.* The Contractor shall include the substance of this clause in subcontracts, third-party agreements, and BAA's, in which subcontractors, third-party servicers/employees, and business associates will perform functions where they will have physical access to a VA facility or logical access to VA data, information, VA sensitive information, or information technology or VA information system containing such data or information.

(End of Clause)

C.6 VAAR 852.211-76 LIQUIDATED DAMAGES – REIMBURSEMENT FOR DATA BREACH COSTS (FEB 2023) ALTERNATE I (FEB 2023)

(a) *Definition.* As used in this clause, “contract” means any contract, agreement, order or other instrument and encompasses the definition set forth in FAR 2.101.

(b) *Non-disclosure requirements.* As a condition of performance under a contract, order, agreement, or other instrument that requires access to sensitive personal information as defined in VAAR 802.101, the following is expressly required—

- (1) The Contractor, subcontractor, their employees or business associates shall not, directly or through an affiliate or employee of the Contractor, subcontractor, or business associate, disclose sensitive personal information to any other person unless the disclosure is lawful and is expressly permitted under the contract; and
- (2) The Contractor, subcontractor, their employees or business associates shall immediately notify the Contracting Officer and the Contracting Officer's Representative (COR) of any security incident that occurs involving sensitive personal information.

(c) *Liquidated damages.* If the Contractor or any of its agents fails to protect VA sensitive personal information or otherwise engages in conduct which results in a data breach, the Contractor shall, in place of actual damages, pay to the Government liquidated damages of \$37.50 per affected individual in order to cover costs related to the notification, data breach analysis and credit monitoring. In the event the Contractor provides payment of actual damages in an amount determined to be adequate by the Contracting Officer, the Contracting Officer may forgo collection of liquidated damages.

(d) *Purpose of liquidated damages.* Based on the results from VA's determination that there was a data breach caused by Contractor's or any of its agents' failure to protect or otherwise engaging in conduct to cause a data breach of VA sensitive personal information, and as directed by the Contracting Officer, the Contractor shall be responsible for paying to the VA liquidated damages in the amount of \$37.50 per affected individual to cover the cost of the following:

- (1) Notification related costs.
- (2) Credit monitoring reports.
- (3) Data breach analysis and impact.
- (4) Fraud alerts.
- (5) Identity theft insurance.

(e) *Relationship to termination clause, if applicable.* If the Government terminates this contract in whole or in part under the Termination for cause paragraph, FAR 52.212–4(m), Contract Terms and Conditions—Commercial Products and Commercial Services, the Contractor is liable for damages accruing until the Government reasonably obtains delivery or performance of similar supplies or services. These damages are in addition to costs of repurchase as may be required under the Termination clause.

(End of Clause)

C.7 METRICS

The Ambient Scribe contract is performance based and IAW FAR 37.101-1, Task Orders issued under Ambient Scribe will be performance-based to the maximum extent practicable. Contractor performance on the Task Order level will be assessed IAW the corresponding QASP Performance Based Service Assessment (PBSA) Survey using the specific metrics detailed in the QASP which may differ between Task Orders depending on the Task Order's scope.

Performance metrics will be applied at the Task Order level once performance has commenced, and may include an initial ramp-up period, as defined at the Task Order level, prior to assessment for past performance purposes.

Task Order Metrics: (at a minimum)

1. Technical Quality of Product or Service : “3” or Above in each category
2. Project Milestones and Schedule: “3” or Above in each category
3. Cost and Staffing: “3” or Above in each category
4. Management: “3” or Above in each category

Please note, for purposes of Task Order past performance evaluations, the ratings issued in the Task Order level QASP PBSA Survey will be combined to inform the Past Performance assessments for the relevant evaluation.

Offerors or Contractors without relevant performance history under this contract will not be evaluated favorably or unfavorably.

Task Orders may include incentives, as well as remedies, tailored for individual Task Orders based on task order type and associated risks.

C.8 MANDATORY WRITTEN DISCLOSURES

Mandatory written disclosures required by FAR clause 52.203-13 to the Department of Veterans Affairs, Office of Inspector General (OIG) must be made electronically through

the VA OIG Hotline at <https://www.vaoig.gov/hotline/online-forms> and clicking on "FAR clause 52.203-13 Reporting." If you experience difficulty accessing the website, call the Hotline at 1-800-488-8244 for further instructions.

(End of Clause)

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

- D.1 Attachment 001 – Pricing Spreadsheet
- D.2 Attachment 002 – Business Associate Agreement

SECTION E - SOLICITATION PROVISIONS**E.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>
<https://www.va.gov/oal/library/vaar/>

(End of Provision)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	SEP 2024
52.203-18	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS—REPRESENTATION	JAN 2017
52.204-5	WOMEN-OWNED BUSINESS (OTHER THAN SMALL BUSINESS)	OCT 2014
52.204-7	SYSTEM FOR AWARD MANAGEMENT—REGISTRATION (DEVIATION)	NOV 2025
52.209-2	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS—REPRESENTATION (DEVIATION)	OCT 2025
52.212-1	INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION)	OCT 2025
52.216-27	SINGLE OR MULTIPLE AWARDS	OCT 1995
52.229-11	TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION (DEVIATION)	SEP 2025
852.215-72	NOTICE OF INTENT TO RE-SOLICIT	OCT 2019
852.233-70	PROTEST CONTENT/ALTERNATIVE DISPUTE RESOLUTION	OCT 2018
852.233-71	ALTERNATE PROTEST PROCEDURE	OCT 2018
852.239-75	INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY NOTICE	FEB 2023

E.2 52.216-1 TYPE OF CONTRACT (NOV 2025) (DEVIATION)

The Government contemplates award of multiple Firm-Fixed-Price contracts resulting from this solicitation.

(End of Provision)

E.3 52.233-2 SERVICE OF PROTEST (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Electronic Address:

Meghan McCloskey; Meghan.McCloskey@va.gov

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

E.4 52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this provision—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production

of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended.

Sensitive technology—

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures.*

- (1) *Covered telecommunications and video surveillance.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”
- (2) *FASCSA Orders.*
 - (i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a

source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

- (ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).
- (iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations.* By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror's possession but does not need to include an internal or third-party audit)—

- (1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and
- (2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror's possession but does not need to include an internal or third-party audit.

(e) *Sudan certification.* By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications.*

- (1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—
 - (i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any

entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

- (ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and
- (iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

- (i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and
- (ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.
- (iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) *Disclosure.*

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

- (i) Contract number and order number, if applicable;
- (ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;
- (iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such

as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

- (iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));
 - (v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;
 - (vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);
 - (vii) Whether alternative products or services are available that would be compliant with the prohibition;
 - (viii) If the product or service is related to item maintenance, include the following information on the item being maintained:
 - (A) Brand;
 - (B) Model number, OEM number, manufacturer part number, or wholesaler number; and
 - (C) Item description, as applicable.
 - (ix) Any readily available information about mitigation actions undertaken or recommended.
- (2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:
- (i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil>.
 - (ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.
- (3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be

sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of Provision)

E.5 BASIS FOR AWARD

A. BASIS FOR AWARD

Any award will be made on the best overall (i.e., best value) proposals that are determined to be the most beneficial to the Government, with appropriate consideration given to the evaluation factors identified herein. The Government will conduct a multi-phase evaluation. Phase I – Hard Down-Select is to assess Offerors' eligibility to proceed to further evaluation and does not constitute an award decision or a competitive range determination. During Phase I, the Government will evaluate Factor 1 – Clinical Operational Deployment. Clinical Operational Deployment will be evaluated on a Go/No-Go basis, and Offerors that fail to demonstrate current operational deployment of the proposed clinical ambient solution in a healthcare clinical setting will be eliminated from further consideration.

Offerors advancing from Phase I will be evaluated under Phase II using Factor 2 – Technical, Factor 3 – Past Performance, Factor 4 – Price, and Factor 5 – Veterans Involvement. To receive consideration for award, an Offeror must achieve a rating of no less than "Acceptable" under the Technical Factor. Based on the results of the Phase II evaluation, the Government intends to establish a competitive range consisting of up to the five (5) most highly rated proposals for the purpose of efficiency. The Government may elect to conduct negotiations following the establishment of the competitive range. If negotiations are deemed necessary, the Government may set an additional competitive range(s) prior to proceeding to Phase III. Only Offerors within the competitive range following Phase II evaluation will be invited to participate in Phase III – Systems Functionality. Factor 6 – Systems Functionality Test will be evaluated on a Pass/Fail basis to ensure the proposed solution meets the Government's functional requirements. Offerors must receive a Pass rating to be considered for award. For the best value tradeoff, Factor 2 – Technical is significantly more important than Factor 3 – Past Performance, which is significantly more important than Factor 4 – Price, which is slightly more important than Factor 5 – Veterans Involvement. All non-price factors, when combined, are significantly more important than Price. Offerors are cautioned that the award may not necessarily be made to the lowest Price offered or the most highly rated Technical proposal. The Government intends to award three (3) contracts but reserves the right to make additional or fewer awards if determined to be in its best interest.

All Offerors are advised that the Government may set multiple competitive ranges. In accordance with Federal Acquisition Regulation (FAR) 52.215-1, Offerors are reminded that if the Contracting Officer determines that the number of proposals that would otherwise be included in any competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals. Additionally, the Government

reserves the right to replenish the competitive range following Phase III if in its best interest.

B. FACTORS TO BE EVALUATED

Phase I – Hard Down-Select:

Factor 1 – Clinical Operational Deployment

Phase II – Best Value (Tradeoff):

Factor 2 – Technical

Factor 3 – Past Performance

Factor 4 – Price

Factor 5 – Veterans Involvement

PHASE III – Systems Functionality:

Factor 6 – Systems Functionality Test

C. EVALUATION APPROACH - All proposals shall be subject to evaluation by a team of Government personnel. The Government reserves the right to award without negotiations based upon the initial evaluation of proposals. If negotiations are entered, they will be held as deemed necessary by the Government with the exception of Phase III. Phase III is designed as a test; therefore, Offerors will not be given an opportunity to revise their solutions. The proposal will be evaluated strictly in accordance with its written content. Proposals which merely restate the requirement or state that the requirement will be met, without providing supporting rationale, are not sufficient. Offerors who fail to meet the minimum requirements of the solicitation will be rated Unacceptable and thus, ineligible for award.

1. PHASE I – Hard Down-Select:

a. FACTOR 1 – CLINICAL OPERATIONAL DEPLOYMENT EVALUATION APPROACH.

The Clinical Operational Deployment evaluation will assess whether the Offeror's proposed clinical ambient documentation solution has already been successfully deployed and implemented in a minimum of 10 healthcare clinical settings and is currently being used by a minimum of 10 clinicians per site to support the delivery of patient care. This requirement is necessary to ensure the Government considers only solutions that have demonstrated sufficient operational maturity, scalability, reliability, and clinical safety in real-world healthcare environments, thereby reducing performance risk and patient safety risk associated with solutions that have not progressed beyond limited, pilot, or experimental use. This evaluation is intended to determine the Offeror's operational maturity and demonstrated clinical use, not the quality of the proposed technical approach.

In this context, “Offeror” refers to the proposed prime contractor and/or subcontractor, where applicable, the entity that owns, licenses, or provides the proposed clinical ambient product. The Government will evaluate evidence demonstrating that the proposed solution is in active operational use within 10 or more healthcare clinical environments.

The Government’s evaluation will be based on information provided by the Offeror, which may include, but is not limited to, customer references, deployment descriptions, statements of work, or other documentation demonstrating that the proposed solution is currently being used by clinicians as part of routine patient care activities. Solutions that are limited to pilot deployments, demonstrations, proof-of-concepts, or non-clinical environments will not satisfy this requirement.

This factor will be evaluated on a Go / No-Go basis.

1. A Go rating will be assigned if the Offeror demonstrates that the proposed solution meets the requirement for current operational clinical deployment at 10 sites. A large scale multi-site healthcare system will be considered per site.
2. A No-Go rating will be assigned if the Offeror fails to demonstrate that the proposed solution is currently in active, sustained clinical operational use within real-world healthcare clinical environments supporting routine patient care.

Offerors receiving a No-Go rating under this factor will be eliminated from further consideration and will not advance to Phase II of the evaluation.

2. PHASE II – Best Value (Tradeoff):

- a. **FACTOR 2 – TECHNICAL EVALUATION APPROACH.** The evaluation process will consider the following:

(1) Understanding of the Problem – The proposal will be evaluated to determine the extent to which it demonstrates a clear understanding of all features involved in solving the problems and meeting and/or exceeding the requirements presented in the solicitation and the extent to which uncertainties are identified and resolutions proposed.

(2) Feasibility of Approach – The proposal will be evaluated to determine the extent to which the proposed approach is workable and the end results achievable. The proposal will be evaluated to determine the level of confidence provided the Government with respect to the Offeror's methods and approach in successfully meeting and/or exceeding the requirements in a timely manner.

- b. **FACTOR 3 – PAST PERFORMANCE EVALUATION APPROACH.**

The Past Performance evaluation will assess the relative risks associated with an Offeror's likelihood of success in fulfilling the solicitation's requirements as indicated by that Offeror's record of past performance. In this context, “Offeror” refers to the proposed prime contractor and all proposed major subcontractor(s). A major

subcontractor is defined as one who will perform more than 20% of the work. In either case, the prime contractor and proposed major subcontractor(s) will be assessed individually and the results will then be assessed in their totality to derive the Offeror's Past Performance rating.

The Government will conduct a performance risk assessment based on the quality of the Offeror's recent and relevant past performance, as well as that of its major subcontractors, as it relates to the probability of successful accomplishment of the required effort. Offerors are cautioned that the Government will review available past performance data available in the Contractor Performance Assessment Reporting System (CPARS). The Government reserves the right to obtain past performance information from any available source and may contact customers other than those identified by the Offeror when evaluating past performance. Since the Government may not necessarily interview all of the sources provided by the Offerors, it is incumbent upon the Offerors to explain the relevance of the data provided. Offerors are reminded that the burden of proving low performance risk rests with the Offerors.

The Government will review aspects of cost, schedule, capabilities and performance. Areas to be evaluated may include, but are not limited to, quality of product or service, timeliness of performance or adherence to delivery schedules, and/or effectiveness in program management (to include use and control of subcontractors).

In the case of an Offeror without a record of relevant past performance or for whom information on past performance is not available, the Offeror may not be evaluated favorably or unfavorably on Past Performance.

c. FACTOR 4 – PRICE EVALUATION APPROACH.

For pricing purposes, the Offeror shall take the following into account:

FFP Contract Line Item Number (CLIN) 0001: The proposed FFP per user-month rates shall represent the maximum allowable rates for each Ordering Year. The average rate will be used to determine the ceiling not-to-exceed (NTE) total for the CLIN by adding each Ordering Year user license rate and dividing by the number of years. That average rate will then be multiplied by the Government provided number of users to determine the total NTE amount for evaluation purposes only.

The FFP per User-Month shall include all enhancements, upgrades, improvements, travel, and additional capabilities that become part of the Contractor's generally available commercial Ambient Scribe solution during the Period of Performance.

The Government shall not be required to pay additional fees for functionality incorporated into the Contractor's standard commercial offering.

Offerors shall incorporate all anticipated costs associated with such commercially available product updates and capability integration into the proposed FFP per User-Month. No additional charges shall be permitted for functionality incorporated into the Contractor's generally available commercial solution.

The Total Contract Evaluated Ceiling Price will be the sum of the evaluated line items. The Government will verify the Offeror's Total Contract Evaluated Ceiling Price using the Excel Pricing spreadsheet at Attachment 001. The Government will adjust the Offeror's proposed Total Contract evaluated ceiling price if mathematical errors are identified.

d. FACTOR 5 – VETERANS INVOLVEMENT EVALUATION APPROACH.

In accordance with Veterans Affairs Acquisition Regulation (VAAR) 852.215-70 (DEVIATION), Service-Disabled Veteran-Owned and Veteran-Owned Small Business (VOSB) Evaluation Factors, the Government will assign evaluation credit for an Offeror (prime contractor) which is a Service-Disabled Veteran-Owned Small Business (SDVOSB) or a VOSB. To receive credit, an offeror must be listed at the time of submission of offers and at time of award, as a certified SDVOSB/VOSB in the SBA certification database on the SBA Veteran Small Business Certification (VetCert) Program portal at <https://veterans.certify.sba.gov/> (see 13 CFR 128) and be otherwise eligible in accordance with SBA size standards for the acquisition and limitations on subcontracting requirements set forth in SBA regulations (see 13 CFR 121, 125 and 128).

Non-Veteran offerors proposing to use certified SDVOSBs or VOSBs as subcontractors will receive some consideration under this evaluation factor. Offerors must state in their proposals the names of the certified SDVOSBs and VOSBs with whom they intend to subcontract and provide a brief description of the proposed subcontracts and the approximate dollar values of the proposed subcontracts. In addition, the proposed subcontractors must be registered and verified in the VetCert (<https://veterans.certify.sba.gov/>) and must meet Federal small business size standards for the NAICS Code 541511 assigned to this solicitation at time of both proposal submission and at time of award.

3. PHASE III – Systems Functionality:

FACTOR 6 - SYSTEM FUNCTIONALITY TEST. During Phase III, the Systems Evaluation Team (SET) will test the Offeror's proposed clinical encounter dictation system capability. Testing will occur over a period of up to two (2) weeks. All Offerors in Phase III will be evaluated on a Pass/Fail basis. In order to pass, the Offeror must meet all acceptance criteria and performance thresholds identified in Table VIII.

E.6 PROPOSAL SUBMISSION INSTRUCTIONS

D. PROPOSAL SUBMISSION

1. INTRODUCTION

The Offeror's proposal shall be submitted electronically by the date and time indicated in the solicitation via email to **Brandon Caltabilota** at **Brandon.Caltabilota@va.gov** and **Meghan McCloskey** at **Meghan.McCloskey@va.gov** in the files set forth below. The Offeror's proposal shall consist of seven (7) volumes:

- Volume I: Clinical Operational Deployment

- Volume II: Technical
- Volume III: Past Performance
- Volume IV: Price
- Volume V: Veterans Involvement
- Volume VI: Solicitation, Offer & Award Documents, Certifications & Representations
- Volume VII: Small Business Subcontracting Plan

The Offeror's proposal will also include a System Functionality Test (under Phase III, Factor 6). The use of hyperlinks or embedded attachments in proposals is prohibited except for artifacts.

WARNING: Please do not wait until the last minute to submit your proposals! Late proposals will not be accepted for evaluation. To avoid submission of late proposals, we recommend the transmission of your proposal file 24 hours prior to the required proposal due date and time. Please be advised that timeliness is determined by the date and time an Offeror's proposal is received by the Government not when an Offeror attempted transmission. Offerors are encouraged to review and ensure that sufficient bandwidth is available on their end of the transmission.

Any questions regarding this Solicitation must be submitted via email to Brandon.Caltabilota@va.gov and Meghan.McCloskey@va.gov with the following subject line: "Ambient Scribe IDIQ Questions." Questions submitted through any other method may not be answered by the Government. Questions and any corresponding Government response may be posted publicly without any redactions; therefore, Offerors are cautioned not to include proprietary, or any other sensitive information, within any submitted questions or comments. If a question must contain proprietary or sensitive information, then that information shall be clearly identified

2. PROPOSAL FILES. Offeror's responses shall be submitted in accordance with the following instructions:

a. Format. The submission shall be clearly indexed and logically assembled. Each volume shall be clearly identified and shall begin at the top of a page. All pages of each volume shall be appropriately numbered and identified by the complete company name, Unique Entity Identifier (UEI), Commercial and Government Entity (CAGE) code, date, and solicitation number in the header and/or footer. Proposal page limitations are applicable to this procurement. The Table below indicates the maximum page count (when applicable) for each volume of the Offeror's proposal. All files will be submitted as either a Microsoft Word (.docx), Microsoft Excel (.xlsx), Acrobat (PDF), or compatible as indicated in the table. Page size shall be no greater than 8 1/2" x 11" with printing on one side, only. The top, bottom, left and right margins shall be a minimum of one inch (1") each. Font size shall be no smaller than 12-point. Times New Roman fonts are required. Characters shall be set at no less than normal spacing and 100% scale. Tables and Illustrations are not subject to the font and spacing requirements. All proposal pages, including those containing Tables or Illustrations shall comply with the margin requirements. Tables and Illustrations shall be legible at 100% zoom. If a Table or Illustration is illegible at 100% zoom, then the entire Table or

Illustration will be deemed to be in violation and will not be evaluated. Line spacing shall be set at no less than single space. Each paragraph shall be separated by at least one blank line. Page numbers, company logos, headers and footers may be within the page margins ONLY, and are not bound by the 12-point font requirement. Footnotes to text shall not be used. All proprietary information shall be clearly and properly marked. If the Offeror submits annexes, documentation, attachments or the like, not specifically required by this solicitation, such will count against the Offeror's page limitations unless otherwise indicated in the specific volume instructions below. Pages in violation of these instructions, either by exceeding the margin, font, printing, or spacing restrictions or by exceeding the total page limit for a particular volume, will not be evaluated. Pages not evaluated due to violation of the margin, font or spacing restrictions will not count against the page limitations. The page count will be determined by counting the pages in the order they come up in the print layout view.

b. **Content Requirements.** All information shall be confined to the appropriate file. The Offeror shall confine submissions to essential matters, sufficient to define the proposal and provide an adequate basis for evaluation. Offerors are responsible for including sufficient details, in a concise manner, to permit a complete and accurate evaluation of each proposal. Volume I – Clinical Operational Deployment will be due in accordance with the Due Date included on the RFP's cover page and will be evaluated as part of Phase I – Hard Down-Select on a Go/No-Go basis. Offerors receiving a Go rating under Phase I will be notified by the Government and provided separate submission instructions and due dates for Phase II proposal volumes. Volume I shall demonstrate that the proposed clinical ambient documentation solution is currently deployed and in active operational use in real-world healthcare clinical environments supporting routine patient care. Offerors receiving a No-Go rating under Volume I will be eliminated from further consideration and will not advance to Phase II. The titles and page limits requirements for each file are shown in the Table below:

Phase	Volume Number	Factor	File Name	Page Limitations
Phase I	Volume I	Clinical Operational Deployment	Clinical Op.pdf	5
Phase II	Volume II	Technical	Tech.docx	20
	Volume III	Past Performance	Past Perf.pdf	None
	Volume IV	Price	Price.xlsx	None
	Volume V	Veterans Involvement	VetsI.pdf	None
	Volume VI	Solicitation, Offer & Award Documents, Certifications & Representations	OfrRep.pdf	None
	Volume VII	Small Business Subcontracting Plan (Large Business Only)	SBSP.pdf	None
Phase III	N/A	Systems Functionality Test	N/A	N/A

A Cover Page, Table of Contents and/or a glossary of abbreviations or acronyms will not be included in the page count of the Technical Volume. However, be advised that

any and all information contained within any Table of Contents and/or glossary of abbreviations or acronyms submitted with an Offeror's proposal will not be evaluated by the Government.

See also FAR 52.212-1, Instructions to Offerors—Commercial Products and Commercial Services.

(i) VOLUME I – CLINICAL OPERATIONAL DEPLOYMENT.

Offerors shall demonstrate that the proposed clinical ambient scribe documentation solution has already been deployed and implemented in a healthcare clinical setting and is currently being used by clinicians to support the delivery of patient care. This volume is intended to provide the Government with sufficient information to determine whether the Offeror meets the minimum eligibility requirement for proven clinical operational deployment.

The information submitted under this volume will be evaluated on a Go/No-Go basis. Offerors that fail to demonstrate current clinical operational use of the proposed solution at scale (minimum of 10 clinical sites being utilized by a minimum of 10 clinicians at each site in production) will receive a No-Go rating and will not advance to Phase II of the evaluation.

This volume shall include, at a minimum, the following information:

- (1) Section 1 – Identification of the Proposed Solution. Offerors shall identify the clinical ambient documentation solution proposed, including:
 - (a) Product name and current version.
 - (b) Identification of the entity that owns, licenses, or provides the solution (prime contractor or subcontractor).
- (2) Section 2 – Clinical Operational Deployment. Offerors shall describe the deployment of the proposed solution in a healthcare clinical setting, including:
 - (a) Identification of all healthcare clinical settings where the solution has been deployed.
 - (b) How many clinicians use the solution as part of routine patient care activities.
- (3) Section 3 – Confirmation of Current Clinical Use. Offerors shall provide a statement confirming that the proposed solution is currently in active use by clinicians and is not limited to a pilot, demonstration, proof-of-concept, or non-clinical environment. Offerors shall also identify the approximate duration of live clinical use.
- (4) Section 4 – Supporting Documentation. Offerors shall provide documentation sufficient to demonstrate current clinical operational use, which may include, but is not limited to:

- (a) Customer reference(s).
- (b) Deployment descriptions.
- (c) Contract excerpts or statements of work.
- (d) Other documentation demonstrating active operational use in a healthcare clinical setting.

Solutions limited to pilots, demonstrations, proof-of-concepts, or non-clinical environments do not meet the requirement for the solution to be currently in operational clinical use. This volume will be evaluated as part of Phase I – Hard Down-Select to determine the Offeror’s eligibility to proceed to Phase II.

(ii) VOLUME II – TECHNICAL FACTOR.

Offerors shall propose a detailed approach that addresses the following:

- a. The Offeror’s technical approach to satisfying the task requirements identified in PWS Sections 5.1.1, 5.1.2, 5.1.3, 5.1.5, and 5.1.6.
- b. The Offeror’s approach to providing SaaS applications and cross-platform support, including clinician-facing web and mobile applications compatible with Windows, iOS, and Android operating systems. Address scalability across varying clinical workflows and VISNs, with site-specific configurations implemented at the Task Order level IAW PWS Section 5.1.2.3 SaaS Solution and Section 5.1.8 Site Configurations.
- c. The Offeror’s approach to licensing lifecycle and usage governance, including activation or deactivation within three business days upon COR request, automatic deactivation recommendations after 30 consecutive days of no usage, and monthly license usage reporting IAW PWS Section 5.1.12.1 Activation, Section 5.1.12.2 Deactivation, and Section 5.3.3 Reporting Requirements.

(iii) VOLUME III – PAST PERFORMANCE FACTOR.

Offerors shall submit a list of all contracts (including Federal, State, and local government and private sector) (prime contracts, task/delivery orders, and/or major subcontracts) in performance at any point during the 3 years immediately prior to the proposal submission date, which are relevant to the efforts required by this solicitation.

Areas of relevance include:

- **Deployment and operation of clinical ambient documentation or similar AI-enabled clinical support solutions in healthcare clinical settings;**
- **Supporting solutions actively used to deliver patient care in production environments;**

- **Operating such solutions at scale, including the number of licensed clinicians or users supported;**
- **Active use of AI capabilities in production, such as speech recognition, natural language processing, or automated clinical documentation; and**
- **Performance of the above efforts as a prime contractor or major subcontractor, including identification of the portion of work performed by each.**

Data concerning the prime contractor shall be provided first, followed by each proposed major subcontractor, in alphabetical order. This volume shall be organized into the following sections:

(1) Section 1 – Contract Descriptions. This section shall include the following information:

- (a) Contractor/Subcontractor place of performance, CAGE Code and DUNS Number. If the work was performed as a subcontractor, also provide the name of the prime contractor and Point of Contact (POC) within the prime contractor organization (name, and current address, e-mail address, and telephone and fax numbers).
- (b) Contracting activity, and current address, Procuring Contracting Officer's name, e-mail address, telephone and fax numbers.
- (c) Technical representative/Contracting Officer's Representative (COR), and current e-mail address, telephone and fax numbers.
- (d) Contract administration activity and the Administrative Contracting Officer's name, and current e-mail address, telephone and fax numbers.
- (e) Contract Number and, in the case of Indefinite Delivery type contracts, GSA contracts, and Blanket Purchase Agreements, include Delivery Order Numbers also.
- (f) Contract Type (specific type such as Fixed Price (FP), Cost Reimbursement (CR), Time & Materials (T&M), etc.) In the case of Indefinite Delivery contracts, indicate specific type (Requirements, Definite Quantity, and Indefinite Quantity) and secondary contract type (FP, CR, T&M, etc.)).
- (g) Awarded price/cost.
- (h) Final or projected final price/cost.
- (i) Original delivery schedule, including dates of start and completion of work.
- (j) Final or projected final, delivery schedule, including dates of start and completion of work.

- (2) Section 2 - Performance. Offerors shall provide a specific narrative explanation of each contract listed in Section 1 describing the objectives achieved and detailing how the effort is relevant to the requirements of this solicitation. For any contract(s)/task order(s) that did not/do not meet original schedule or technical performance requirements, provide a brief explanation of the reason(s) for the shortcoming(s) and any corrective action(s) taken to avoid recurrence. The Offerors shall list each time the delivery schedule was revised and provide an explanation of why the revision was necessary. The Offerors shall indicate if any of the contracts listed were terminated and the type and reasons for the termination.
- (3) Section 3 – Subcontracts. Offerors shall provide an outline of how the effort required by the solicitation will be assigned for performance within the Offeror's corporate entity and among the proposed subcontractors. The information provided for the prime Offeror and each proposed major subcontractor must include the entire company name, company address, CAGE Code, DUNS Number and type of work to be performed by citing the applicable Government PWS paragraph number.
- (4) Section 4 – New Corporate Entities. New corporate entities may submit data on prior contracts involving its officers and employees. However, in addition to the other requirements in this section, the Offeror shall discuss in detail the role performed by such persons in the prior contracts cited. Information should be included in the files described in the sections above.

(iv) VOLUME IV – PRICE FACTOR

The Offeror shall complete the Schedule of Supplies/Services found in the Excel Pricing Attachment 001 - Pricing Sheet, attached hereto.

The Offeror shall complete the Excel Pricing Attachment 001 - Pricing Spreadsheet by proposing prices for each Ordering Year in each of the yellow shaded cells, as well as for all FFP CLINs. Proposed prices shall be no more than two decimal places. Calculation of the Total Evaluated FFP will be done automatically in the spreadsheet based on the user month prices entered by the Offeror and summing of the FFP CLINs. Please be advised that the Offeror is bound to the firm-fixed pricing proposed for each of the yellow-shaded cells.

All Offerors should propose using an estimated award date of June 2, 2026.

(v) VOLUME V – VETERANS INVOLVEMENT FACTOR.

- (1) For SDVOSBs/VOSBs: In order to receive credit under this Factor, an Offeror shall submit a statement of compliance that it qualifies as a SDVOSB or VOSB in accordance with VAAR 852.215-70, Service-Disabled Veteran-Owned and Veteran-Owned Small Business Evaluation Factors (DEVIATION). Offerors are cautioned that they must be listed at the time of submission of offers and at time of award, as a certified SDVOSB/VOSB in the SBA certification database on the SBA Veteran Small Business Certification Program portal

at <https://veterans.certify.sba.gov/> (see 13 CFR 128) and be otherwise eligible in accordance with SBA size standards for the acquisition and limitations on subcontracting requirements set forth in SBA regulations (see 13 CFR 121, 125 and 128).

- (2) For Non-SDVOSBs/VOSBs: To receive some consideration under this Factor, an Offeror must state in its proposal the names of certified SDVOSB(s) and/or certified VOSB(s) with whom it intends to subcontract, and provide a brief description and the approximate dollar values of the proposed subcontracts. Additionally, proposed SDVOSB/VOSB subcontractors must be listed at the time of submission of offers and at time of award, as a certified SDVOSB/VOSB in the SBA certification database.

(vi) VOLUME VI - SOLICITATION, OFFER AND AWARD DOCUMENTS AND CERTIFICATIONS/REPRESENTATIONS.

Certifications and Representations - This Volume shall contain the following:

- a. Solicitation Section A – Standard Form (SF1449) and Acknowledgement of Amendments, if any.
- b. Any proposed terms and conditions and/or assumptions upon which the proposal is predicated, price, technical, and/or otherwise.
- c. Offerors shall provide a list of all proposed subcontractors including company name, CAGE code and Unique Entity Identifier (UEI) number.
- d. Certifications and Representations - An authorized official of the firm shall sign the SF 1449 and all certifications requiring original signature. An Acrobat PDF file shall be created to capture the signatures for submission.

As part of the Certifications and Representations, Offerors shall also certify and represent that any Artificial Intelligence (AI), including Large Language Models (LLMs), proposed or anticipated for use in performance of the contract complies with the Trustworthy Artificial Intelligence and Unbiased Artificial Intelligence requirements set forth in the Performance Work Statement, including applicable VA Trustworthy AI principles and OMB Memorandum M-26-04.

Offerors are hereby advised that any Offeror-imposed terms and conditions and/or assumptions which deviate from the Government's material terms and conditions established by the Solicitation, may render the Offeror's proposal Unacceptable, and thus ineligible for award.

(vii) VOLUME VII – SMALL BUSINESS SUBCONTRACTING PLAN.

Each Large Business Offeror shall provide a Small Business Subcontracting Plan that contains all of the elements required by FAR 52.219-9. If the large business does not have an approved Master Plan or approved Commercial Plan, then an Individual Subcontracting Plan must be submitted that includes an assurance that small

businesses will be given the maximum practicable opportunity to participate in contract performance. The Subcontracting Plan is not a requirement for evaluation in source selection, but rather, a requirement for award to a Large Business and the Plan, as negotiated, will be incorporated into any resultant contract.

(viii) **SYSTEM FUNCTIONALITY TEST.**

The Phase III – System Functionality Evaluation will be used to assess whether the Offeror's proposed clinical ambient documentation solution meets the Government's minimum functional requirements for use in a clinical environment.

Only Offerors that successfully advance from Phase I – Hard Down-Select and determined to be within the competitive range following Phase II evaluation will be invited to participate in the System Functionality Test.

1. System Functionality Test Overview

The Government will conduct a System Functionality Test to evaluate the Offeror's proposed solution under controlled conditions in a Government-designated simulation environment. The purpose of this test is to validate that the proposed system can accurately, reliably, and timely transcribe clinical encounters in a manner suitable for real-world patient care.

The System Functionality Test is not a technical proposal submission. Rather, it is a hands-on evaluation of the Offeror's operational system capabilities. The test will be conducted by the Government's SET over a period of up to two (2) weeks.

Offerors will not participate directly in the testing sessions nor will they be given an opportunity to revise their solutions during or after the test. Offerors will, however, need to provide limited technical support in accordance with the below prior to the testing period.

2. Access and Credentials

Offerors that successfully advance from Phase I – Clinical Operational Deployment will have 10 business days to provide login credentials and a functional Uniform Resource Locator (URL) for the Offeror's non-production test environment. Credentials shall not provide access to any production environment. This submission is to ensure system readiness when Phase III begins, if the Offeror has been included in the Competitive Range after Phase II.

Credentials and access instructions shall be submitted electronically to the Government-designated point of contact to ensure readiness when Phase III begins.

Offerors shall:

- Submit any URLs or Internet Protocol addresses requiring whitelisting.
- Provide one provisioned license per product.

- Provide credentials that allow access to a test environment only, not a production environment.

3. Test Environment

Testing will be conducted within a VA Simulation Center or equivalent Government-controlled environment designed to replicate a VA clinical setting. Testing will be conducted by VA personnel using Government-Furnished Equipment (GFE).

The following conditions apply:

- The Offeror's solution will be installed in a sequestered simulation network that mimics a VA clinical environment.
- Offerors may not install or operate non-Authorized (non-ATO) software on actual VA production hardware.
- All testing will occur under Government-controlled conditions using Government-provided clinical scenarios.

The Offeror's proposed solution will be evaluated using VA GFE with specifications at or above the following baseline configuration:

- Windows 11 Enterprise
- Intel® Core(TM) i5-1145G7 at 2.60 GHz
- 256 GB SSD
- Wi-Fi 6 and Bluetooth
- Integrated array microphone
- Microsoft Edge or Google Chrome supported

4. Test Operations and Constraints

The Government will evaluate system functionality using multiple simulated clinical encounters. The System Functionality Test will be conducted under the following operational conditions and constraints:

- Pre-recorded patient encounters will be played in-room and captured via the VA laptop microphone.
- The same set of standardized recordings will be used to evaluate all Offeror solutions to ensure consistent testing conditions across Offerors.
- The Government will control the playback of recordings and the testing sequence.

Pre-recorded encounters may include:

- Routine outpatient or inpatient encounters.
- Encounters involving background noise, interruptions, or multiple speakers.
- Complex or ambiguous clinical dialogue designed to assess transcription robustness.

The specific scenarios and scripts will be determined by the Government. Offerors will not be permitted access the specific scenarios and scripts prior to testing to modify or pre-train the system on the test scenarios. The scripts used will be primary care consults.

Technical issues attributable to VA GFE, network connectivity, or the testing environment may result in the Government pausing or restarting the test scenario at its discretion.

5. Data Handling and Privacy

The Systems Functionality Test will be conducted using simulated data under the following data handling and privacy conditions:

- No Protected Health Information will be used during testing.
- All recordings will consist of simulated audio only.
- The Offeror's system must generate both a transcript of the encounter and an Assessment, Plan, Subjective, Objective-format (APSO) clinical note. Only transcripts and APSO clinical notes are required for export.
- Measurement of time to delivery will not stop until both the transcript and the clinical note are available for export via file save or copy to clipboard.

6. Required Offeror Support

Offerors shall provide limited technical support prior to the Systems Functionality Test under the following conditions:

- Escalation Service Level Agreements (SLAs) must include acknowledgement within one (1) hour during business hours.
- Any system outage must be immediately reported to the Government.
- Offerors must provide sufficient instructions on how to use the product to export notes and record the transcript.

Technical support prior to Phase III testing shall be limited to:

- Account provisioning
- Access credentials
- Connectivity issues necessary to enable Government access to the test environment

Offerors shall not provide operational assistance, configuration changes, tuning, or other support that could influence system performance during the evaluation.

The Government will notify Offerors of scheduled testing dates and times.

7. Acceptance Criteria

The System Functionality Test will be evaluated on a Pass/Fail basis against the following acceptance criteria set forth below. Each criterion represents a minimum performance threshold. Offerors must successfully meet all stated acceptance criteria to be eligible for award. The criteria and measurement methods are identified in the table below.

a. Timeliness

The system must generate clinical documentation output to support clinical usability. Refer to the table below for the performance thresholds related to this category.

b. Quantitative Accuracy

The Government will assess transcription fidelity using objective measures. Refer to the table below for the performance thresholds related to this category.

These measures are intended to evaluate the accuracy of the transcription relative to the source transcript.

c. Meaning Preservation

The Government will assess whether the general clinical documentation preserves the meaning and clinical intent of the source encounter. Refer to the table below for the performance thresholds related to this category.

d. Qualitative Accuracy

The Government will assess clinical acceptability and safety through blind review by qualified clinicians. Refer to the table below for the performance thresholds related to this category.

8. Evaluation Outcome

The System Functionality Test will result in a Pass/Fail determination based on whether the Offeror meets all performance thresholds described above including the Pass/Fail Standards table below.

To receive consideration for award, an Offeror must pass all performance thresholds described in the table below under the System Functionality Factor.

Table VIII - Pass/Fail Standards (Single Metric per Category)

Category	Single Most Applicable Standard	Cutoff (Pass/Fail)	Measurement Method (Government-Controlled)
Timeliness	Final Note Availability	hard max ≤ 3 minutes	Measure end of audio to “clinician ready” note timestamp across all sessions.

Category	Single Most Applicable Standard	Cutoff (Pass/Fail)	Measurement Method (Government-Controlled)
Quantitative Accuracy	Word Error Rate (WER)	$\leq 12\%$ overall; $\leq 8\%$ in routine/quiet scenarios	Compute WER versus adjudicated ground truth transcripts using standard tooling. Report overall and stratified by quiet/noisy.
Meaning Preservation	Meaning Difference Score (SBERT cosine similarity)	≥ 0.92 average similarity per encounter	• Compute sentence level SBERT cosine similarity between system transcript and ground truth; aggregate to encounter level means. • Any clinically significant meaning reversal that is detected is a failure. • Any exported note is incomplete or missing required sections is also a failure.
Qualitative Accuracy	Clinical Equivalence Rate (blind clinician review)	$\geq 80\%$ of notes rated "clinically acceptable" as determined by physician subject matter experts.	Multiple independent clinician reviewers per note; tally proportion meeting threshold. Clinically acceptable notes accurately document the care delivered without any substantive errors that might impact patient safety.